

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T. REYES II
HEARING DATE: 05/27/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 8:31 AM CASE NUMBER: C24-02285
CASE NAME: DARRIN OHLHAUSER VS. TAILGATERS SPORTS BAR & GRILL
***FURTHER CASE MANAGEMENT CONFERENCE TO TRAIL MOTION (ON ORDER SUBSTITUTING SUCCESSOR IN INTEREST)**
FILED BY:
TENTATIVE RULING:

This Case Management Conference trails the hearing on Line 9. The matter is unopposed. This CMC is continued to November 23, 2026 at 8:30 a.m. The Parties are ordered to meet and confer to discuss Alternative Dispute Resolution and to provide a further update to the Court on their efforts to resolve this case. No appearance is required on May 27, 2026.

2. 9:00 AM CASE NUMBER: C24-02414
CASE NAME: DELLYON ROBINSON VS. FCI LENDER SERVICES, INC.
***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference trails the hearing on Line 10. If the tentative ruling is not contested, this CMC is continued to November 23, 2026 at 8:30 a.m. The Parties are ordered to meet and confer to discuss Alternative Dispute Resolution and to provide a further update to the Court on their efforts to resolve this case.

3. 9:00 AM CASE NUMBER: C24-02896
CASE NAME: STEVEN SMITH VS. DONALD IWUCHUKWU
***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference trails the hearing on Line 12. If the tentative ruling is not contested, this CMC is continued to November 23, 2026 at 8:30 a.m. The Parties are ordered to meet and confer to discuss Alternative Dispute Resolution and to provide a further update to the Court on their efforts to resolve this case.

4. 9:00 AM CASE NUMBER: C24-02896
CASE NAME: STEVEN SMITH VS. DONALD IWUCHUKWU
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY CHRISTIAN ANYIAM SHOULD NOT BE HELD IN CONTEMPT FOR FAILURE TO APPEAR AT THE 4/23/2026 CASE MANAGEMENT CONFERENCE
FILED BY:

TENTATIVE RULING:

Respondent Steven Smith, trustee of Patricia Byrd Canson Living Trust's, ("Respondent") *Ex Parte* Application for Order to Show Cause why Donald Iwuchuku, Christian Anyiam, and Metu Ogike should not be found in contempt for preparing and offering false evidence to the Court is **reserved** as a trial issue to be determined by the trier of fact. Per the Court's Order on April 20, 2026, a contempt citation is not the proper way to resolve allegations of false evidence. The Court will not rule on this matter on May 27, 2026. This hearing is **vacated**.

5. 9:00 AM CASE NUMBER: C25-02721
CASE NAME: LUIS ARMENTA GOMEZ VS. PREYANKA KANDA
***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference trails the hearing on Line 17. If the tentative ruling is not contested, this CMC is continued to November 23, 2026 at 8:30 a.m. The Parties are ordered to meet and confer to discuss Alternative Dispute Resolution and to provide a further update to the Court on their efforts to resolve this case.

6. 9:00 AM CASE NUMBER: C25-03757

CASE NAME: CATHAY BANK, VS. CHRISTINA SEELYE

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference trails the hearing on Line 18. If the tentative ruling is not contested, this CMC is continued to November 23, 2026 at 8:30 a.m. The Parties are ordered to meet and confer to discuss Alternative Dispute Resolution and to provide a further update to the Court on their efforts to resolve this case.

Law & Motion

7. 9:00 AM CASE NUMBER: C23-02239

CASE NAME: DAWN JANOWSKI VS. J B MECHANICAL, INC.

***HEARING ON MOTION IN RE: FINAL APPROVAL OF CLASS ACTION & PAGA CLAIM**

FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Dawn Janowski's ("Plaintiff") Motion for Final Approval of PAGA Settlement and Attorney's Fees against Defendant JB Mechanical Inc. ("Defendant") is **granted** as set forth herein. No appearance is required at the hearing on May 27, 2026.

Background

On September 6, 2023, Plaintiff filed a class action complaint against Defendant alleging seven causes of action related to labor law violations, including failure to provide meal and rest periods, failure to pay wages and overtime, failure to provide accurate wage statements, failure to timely pay final wages, failure to indemnify, and unfair competition. On November 9, 2023, Plaintiff Janowski filed a First Amended Complaint adding a claim for Civil Penalties under Labor Code § 2698. Plaintiff Janowski provided timely PAGA notice to Defendants and the LWDA on September 6, 2023, followed by a revised notice on September 14, 2023. After the LWDA did not express interest in investigating, Plaintiff filed the First Amended Complaint with the PAGA claim.

The parties commenced mediation, which resulted in a Gross Settlement Amount of \$600,000.00 on a class-wide and PAGA representative basis. Defendants will fund the Gross Settlement Amount and their share of payroll taxes in two installments: \$350,000.00 to be paid 30 days after Court approval, and \$250,000.00 to be paid 90 days after the first installment. The Class Period is defined as September 6, 2019, through April 9, 2025. Aggrieved Employees are hourly, non-exempt employees who worked for Defendants in California during the PAGA Period (September 6, 2022, through January 13, 2026).

The Class consists of named Plaintiffs and all hourly, non-exempt employees who worked for Defendants in California during the Class Period. It is an opt-out class with no claim form requirement, and no residual will revert to Defendants. The highest estimated Individual Class Payment is

approximately \$5,871.01, the average is approximately \$1,662.82, and the lowest is approximately \$20.11.

Additional disbursements from the Gross Settlement Amount include: Class Counsel Fees of \$200,000.00; Class Counsel Litigation Expenses of \$18,510.90; Administration Expenses of \$7,250.00; Class Representatives' Service Awards of \$15,000.00 (\$7,500 each to Plaintiffs Janowski and Webb-Turner); and PAGA Penalties of \$30,000 (with \$22,500 going to LWDA). After these deductions, the Net Settlement Amount to be distributed to Participating Class Members is estimated to be \$328,239.10.

Analysis and Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees and Costs

Plaintiff seeks thirty percent (30%) of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is

extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (Id., at 505.)

Counsel has prepared a detailed declaration explaining the fee methodology, the experience of counsel, and other factors, including the *Lodestar* factors. The Court finds that the fees are reasonable and approved.

Litigation costs of \$18,510.90 are reasonable and are approved. Settlement administration costs of \$7,250.00 are reasonable and are approved. The requested representative payments of \$15,000 for plaintiff class representatives (Janowski and Webb-Turner) are reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiffs Janowski and Webb-Turner attest, in their declarations, that they spent at least 25 hours of their time on the case, and accepted undefined “risk” by doing so. Considering all of the factors, particularly the size of the settlement, the full requested payment is approved.

Conclusion and Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate, with the small reduction in the attorney’s fees. The motion is **granted**.
2. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order.
3. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
4. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
5. The compliance hearing will be held in Department 16, the Honorable Benjamin Reyes. Counsel are directed to contact the court clerk to calendar a Compliance Hearing. If Counsel’s compliance statement is acceptable, then the Court may issue an unreported minute order releasing the 5% retention of fees prior to the compliance hearing.
6. No appearance is required at the hearing on May 27, 2026.

8. 9:00 AM CASE NUMBER: C24-01041
CASE NAME: ADRIAN VASQUEZ VS. GOLDEN GATE MEAT COMPANY, INC.
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY: VASQUEZ, ADRIAN

TENTATIVE RULING:

Summary

Plaintiff Adrian Vasquez’s Motion for Preliminary Approval of Class Action Settlement with Defendants Golden Gate Meat Company, Inc. (“GGMC”), Jimi-Z Offenbach, Patricia A. Offenbach, and Justin Offenbach (“Defendants”) is approved as set forth herein. No appearance is required at the

May 27, 2026 hearing.

Background and Settlement Terms

The proposed settlement agreement between the Parties in this class action case establishes a Gross Settlement Amount of \$600,000. The settlement encompasses all shares to be paid to Class Members who do not opt out, settlement administration fees not exceeding \$10,000, a \$10,000 Class Representative Incentive Payment award to Plaintiff subject to Court approval, a \$60,000 Private Attorneys General Act (PAGA) settlement, and payment to Class Counsel Mallison & Martinez in the amount of \$200,000 for reasonable litigation costs and attorneys' fees. The settlement was reached after thorough analysis of timekeeping and payroll data, representing informed compromises between both parties after considering the risks of litigation including potential defenses and complexities of proving damages.

The settlement structure ensures that no portion of the Settlement Payment will revert to Defendants. Any shares of Participating Class Members that remain uncashed after 180 days from issuance will be distributed to a *cy pres* recipient to be determined and approved by the Court. The payment schedule requires Defendants to pay twenty percent of the Gross Settlement Amount within 15 business days after final approval, with the remaining eighty percent to be paid within seven business days after the Effective Date.

The underlying action was filed on April 17, 2024, alleging multiple wage and hour violations including failure to pay contractual wages, minimum wage, overtime wages, meal and rest period violations, wage statement violations, and Unfair Competition Law violations on behalf of non-exempt employees. An amended complaint was filed on June 26, 2024, adding a claim for penalties under PAGA. The case was stayed pending case management conference, during which the Court ordered the parties to exchange information and attend mediation, which ultimately led to this settlement agreement.

The distribution plan allocates specific amounts from the Gross Settlement Amount: \$10,000 to the Class Representative (in addition to their settlement share), reasonable attorneys' fees and litigation expenses to Class Counsel, \$60,000 for PAGA claims settlement, and up to \$10,000 for Settlement Administrator fees and expenses. After these deductions, the Net Settlement Amount will be distributed to all Participating Class Members on a pro rata basis, calculated by dividing the Net Settlement Amount by the total number of workweeks worked by each Class Member during the Class Period (April 17, 2020 to July 29, 2025).

For the PAGA claims portion, 25% of the \$60,000 allocation (i.e., \$15,000) will be distributed among Class Members employed during the PAGA Period (April 10, 2023 through July 29, 2025). This amount will be allocated pro rata based on the number of Pay Periods they were employed during the PAGA Period, in addition to their share of the Net Settlement Amount if they are also a Participating Class Member. The Settlement Administrator and Class Counsel will undertake reasonable efforts to ensure that Participating Class Members receive their Settlement Shares in this case.

Analyses

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and

adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$5,000 for each plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

1. The settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. As such, the Motion is **granted**.
2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date.
3. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with

Code of Civil Procedure section 384(b).

4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement. The Court may issue a release through an unreported minute order without a hearing on the compliance statement.
5. No appearance is required at the May 27, 2026 hearing.

9. 9:00 AM CASE NUMBER: C24-02285
CASE NAME: DARRIN OHLHAUSER VS. TAILGATERS SPORTS BAR & GRILL
***HEARING ON MOTION IN RE: ORDER SUBSTITUTING SUCCESSOR IN INTEREST**
FILED BY: OHLHAUSER, DARRIN
TENTATIVE RULING:

Plaintiffs Nita Ohlhauser, successor in interest to Darrin Ohlhauser, deceased, filed a Motion for Order Substituting Successor in Interest. The Motion seeks to name decedent's spouse, Nita Ohlhauser as the proper success in interest pursuant to Cal. Code of Civ. Proc. § 377.30. This Motion is unopposed and is therefore **granted**.

The Court will execute the proposed order lodged on December 2, 2025. No appearance is required at the hearing on May 27, 2026. The Court sets a further case management conference for November 24, 2026 at 8:30 a.m. The parties are ordered to file a further Case Management Conference Statement.

10. 9:00 AM CASE NUMBER: C24-02414
CASE NAME: DELLYON ROBINSON VS. FCI LENDER SERVICES, INC.
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: FCI LENDER SERVICES, INC.
TENTATIVE RULING:

Defendant FCI Lender Services, Inc.'s motion for judgment on the pleadings is **granted with leave to amend**.

Plaintiff alleges that Defendant was the loan servicer on his mortgage, but Defendant refused to provide a reinstatement quote when requested. (Comp. ¶15.) Plaintiff sued Defendant for (1) breach of the implied covenant of good faith and fair dealing, (2) violation of Civil Code section 2924c and (3) violation of Business and Professions Code section 17200. Defendant filed this motion for judgment on the pleadings as to each of the three causes of action on the ground that the facts alleged do not state sufficient facts to constitute a cause of action.

Collateral Estoppel

Defendant argues that Plaintiff is collaterally estopped from bringing these claims because he agreed to a stipulated judgment in an unlawful detainer action. In opposition Plaintiff argues both the merits of collateral estoppel and that judicial estoppel precludes Defendant's argument.

Judicial estoppel occurs " 'when " (1) the same party has taken two positions; (2) the positions

were taken in judicial or quasi-judicial administrative proceedings; (3) the party was successful in asserting the first position (i.e., the tribunal adopted the position or accepted it as true); (4) the two positions are totally inconsistent; and (5) the first position was not taken as a result of ignorance, fraud, or mistake.” [Citations.]’ [Citations.]” (*Minish v. Hanuman Fellowship* (2013) 214 Cal.App.4th 437, 449.)

In July 2025, Plaintiff filed a motion to consolidate this case with the unlawful detainer proceeding. He then filed an *ex parte* application to advance the hearing date on the motion to consolidate on October 1, 2025. Defendant opposed the application, arguing in part that there were no common issues in the two cases. “It must also be noted that action does not contain any allegations about whether or not the notice requirements of Civil Code section 2924, et seq. have been satisfied in relation to the non-judicial foreclosure sale; rather, it merely concerns Defendant’s alleged duty or duties to provide a reinstatement quote — a completely separate issue of law.” (Opposition to Ex Parte Application p. 6.)

The Court denied the *ex parte* application. There were multiple reasons to deny the application, including the Court’s calendar, the fact that Plaintiff waited until October to bring the request when the motion to continue was filed months earlier and/or because the Court accepted Defendant’s argument that the two cases did not involve common questions of law. The order denying the *ex parte* request did not specify the reasons. It is not clear from the record that the Defendant’s argument that the two cases did not involve common questions of law was the basis for the Court’s denial of the *ex parte* application and thus, the Court finds that judicial estoppel does not apply here.

The Court will now consider whether collateral estoppel applies here. Issue preclusion or collateral estoppel applies when “ ‘First, the issue sought to be precluded from relitigation must be identical to that decided in a former proceeding. Second, this issue must have been actually litigated in the former proceeding. Third, it must have been necessarily decided in the former proceeding. Fourth, the decision in the former proceeding must be final and on the merits. Finally, the party against whom preclusion is sought must be the same as, or in privity with, the party to the former proceeding. [Citations.] The party asserting collateral estoppel bears the burden of establishing these requirements.’ [Citation.]” (*Ayala v. Dawson* (2017) 13 Cal.App.5th 1319, 1326.)

One of the key questions when deciding if collateral estoppel applies is whether the issues were fully and fairly litigated in the first proceeding. “ ‘[A]n unlawful detainer judgment has limited [preclusive] force because it typically follows a summary proceeding focused only on deciding a party’s right to immediate possession of property.’ [Citation.]... ‘[W]here title is acquired through [section 1161a proceedings], courts must make a *limited inquiry* into the basis of the plaintiff’s title.’ [Citation.] ‘Section 1161a provides for a *narrow and sharply focused examination of title*. To establish that he is a proper plaintiff, one who has purchased property at a trustee’s sale and seeks to evict the occupant in possession must show that he acquired the property at a regularly conducted sale and thereafter “duly perfected” his title.’ (*Vella v. Hudgins* (1977) 20 Cal.3d 251, 255, italics added (*Vella*).)” (*Struiksma v. Ocwen Loan Servicing, LLC* (2021) 66 Cal.App.5th 546, 554-555.)

Here, the unlawful detainer action was brought by the owner of the property who had purchased it from a foreclosure sale and brought the action under Code of Civil Procedure section 1161a. “Only claims ‘*directly connected* with the conduct of the sale’ are required to be litigated in a section 1161a proceeding. [Citation.] And the required title inquiry is limited due to the condensed nature of unlawful detainer actions. [Citation.] To preserve the summary nature of section 1161a proceedings, we narrowly construe whether a claim directly relates to the conduct of the sale.” (*Struiksma, supra*, 66 Cal.App.5th at 556.)

“ ‘It is true that where the purchaser at a trustee’s sale proceeds under section 1161a ... he must prove his acquisition of title by purchase at the sale; *but it is only to this limited extent, as provided by the statute, that the title may be litigated in such a proceeding.* ... [T]he plaintiff need only prove a sale in compliance with the statute and deed of trust, followed by purchase at such sale, and the defendant may raise objections only on that phase of the issue of title. Matters affecting the validity of the trust deed or primary obligation itself, or other basic defects in the plaintiff’s title, are neither properly raised in this summary proceeding for possession, nor are they concluded by the judgment.’ [Citation.]” (*Struiksma, supra*, 66 Cal.App.5th at 555.)

In *Struiksma* the plaintiffs lost title to their home in a foreclosure sale. The purchaser from the sale then brought an unlawful detainer action pursuant to Code of Civil Procedure section 1161a. Plaintiffs defaulted in the unlawful detainer case and were evicted. Plaintiffs then filed a lawsuit against their lender and loan servicer. Plaintiffs alleged defendants failed to credit several payments to their loan balance and thus, plaintiffs contended they were never in default and defendants wrongfully foreclosed on the property. (*Id.* at 551.) The trial court found the second lawsuit was barred by collateral estoppel. The court of appeal reversed. It explained that in the unlawful detainer proceeding “the court must determine whether the purchaser duly perfected title. But this is a limited inquiry focusing on how the trustee’s sale is conducted. Issues of title outside this narrow scope need not be raised and are not precluded in subsequent lawsuits.” (*Id.* at 551.)

In *Malkoskie*, the plaintiffs sued for quiet title and related claims seeking to set aside a nonjudicial foreclosure sale and subsequent eviction. (*Malkoskie v. Option One Mortgage Corp.* (2010) 188 Cal.App.4th 96.) After their property was sold through a foreclosure sale, the new owner brought an unlawful detainer action. In that action, plaintiffs raised issues regarding the invalidity of the sale in the answer by alleging affirmative defenses, including that the wrong trustee and beneficiary had instituted the foreclosure process. Ultimately plaintiffs agreed to a stipulated judgment in the unlawful detainer case, giving the new owner possession. The trial court held that collateral estoppel barred the second action. The court of appeal agreed, explaining that “[t]he conduct of the sale and the validity of the resulting transfer of title... were therefore directly in issue in the unlawful detainer case” and thus, the stipulated judgment in the unlawful detainer case barred a subsequent action challenging the new owner’s title to the property. (*Id.* at 976.)

In the unlawful detainer action at issue here, NWL Company alleged that it purchased the property pursuant to a duly noticed trustee’s sale and thus, were entitled to possession under Code of Civil Procedure section 1161a. (RJN 8.) Plaintiff filed an answer, but did not make a general denial. Instead Plaintiff checked the box for specific denials, but failed to include any such denials and did not

include any affirmative defenses. (RJN 9.) Plaintiff and NWL then entered into a stipulated judgment, giving NWL possession. (RJN 10.)

Plaintiff raised essentially no defenses in the unlawful detainer. And the record does not support finding any issues of title were decided beyond those issues necessary for possession. Thus, this case is most similar to *Struikma, supra*, 66 Cal.App.5th 546. Therefore, the Court finds that the inquiry in the unlawful detainer, and thus its preclusive effect, is limited to “focusing on how the trustee’s sale is conducted. Issues of title outside this narrow scope need not be raised and are not precluded in subsequent lawsuits.” Here, by contrast, Plaintiff alleges that Defendant failed to provide a reinstatement quote, which is a completely separate issue of law.

While both the unlawful detainer and this case involve consideration of Civil Code section 2924, that does not mean they involved the same issues. In an unlawful detainer involving a bona fide purchaser, the issues are limited to whether the foreclosure sale itself proceeded as required by law. (See, e.g. *Biancalana v. T.D. Service Co.* (2013) 56 Cal.4th 807, 814.) Sections 2924-2924k include many different requirements for lenders and loan servicers, which are normally outside the scope of an unlawful detainer.

The Court finds that judicial estoppel does not bar Plaintiff’s claims relating to the reinstatement quote.

Cause of Action One

As to the first cause of action for breach of the implied covenant of good faith and fair dealing, Plaintiff acknowledged that it was not properly alleged and requested leave to amend to replace that cause of action with one for interference with contract. Plaintiff’s request is **granted** and therefore, the motion is granted with leave to amend as to cause of action one.

Cause of Action Two

As to the second cause of action for breach of Civil Code section 2924, Defendant argues that Plaintiff has not alleged a cause of action under section 2924c or 2924d. In opposition, Plaintiff focuses on section 2924c and the alleged failure to provide a reinstatement quote.

“Section 2924c, subdivision (a)(1) provides that when a mortgage loan is accelerated as a result of a borrower’s default, the borrower can reinstate the loan by paying all amounts due, ‘other than the portion of principal as would not then be due had no default occurred.’ That is, the borrower can cure the default and reinstate the loan by paying the amount of the default, including fees and costs resulting from the default, rather than the entire accelerated balance. The mortgage lender must inform the borrower of the correct amount due to reinstate the loan [Citation.]” (*Taniguchi v. Restoration Homes LLC* (2019) 43 Cal.App.5th 478, 483-484.) Thus, providing an accurate reinstatement amount is a key component of giving Plaintiff the opportunity to reinstate the loan.

Defendant argues that no such reinstatement quote is required, citing to *Wagma Safi v. Bank*

of Am., N.A. (E.D.Cal. Oct. 9, 2013, No. 2:12-CV-02280-JAM-AC) 2013 U.S.Dist.LEXIS 147005. *Safi* is distinguishable as that case did not address whether a lender or loan servicer must provide a reinstatement quote because there the plaintiff alleged that she knew the actual amount due. (*Id.* at *10-11.)

Here, Plaintiff took out a \$811,539 mortgage in 2022. (RJN 1.) Plaintiff alleges that Defendant was the servicer of the loan. (Comp. ¶13.) Defendant recorded a notice of default on April 15, 2025. (Comp. ¶14.) On August 15, 2024, Plaintiff requested a reinstatement quote from Defendant over the phone, however, Defendant refused to provide a reinstatement quote and thus, Plaintiff was unable to reinstate the loan. (Comp. ¶¶15, 30, 31.)

Defendant argues that the notice of default and notice of sale included the amount owed. The notice of sale listed the total repayment amount of \$1,110,943.70, which is not the same thing as the reinstatement amount. (RJN 5.) The notice of default listed for repayment as \$927,694.43. (RJN 4.) But the notice of default was dated April 15, and Plaintiff requested the reinstatement amount months later on August 15. The reinstatement amount would necessarily increase over time if no payments were made and thus, the amount in April would not necessarily be the same as the amount in August. Therefore, the Court finds that the notice of default and notice of sale do not preclude Plaintiff's claim for the alleged failure to provide a reinstatement amount. The Court also finds that the failure to provide a reinstatement quote when requested is a violation of section 2924c.

Defendant also argues that as a loan servicer, not a lender, it was not required to provide a reinstatement quote. Plaintiff argues that his point of contact on the loan was the loan servicer, however, this is not alleged in the complaint. Since Plaintiff has not alleged that Defendant, the loan servicer, was Plaintiff's point of contact on the loan it is not clear that Defendant was the one required to provide a reinstatement amount. Therefore, the motion is **granted** with leave to amend as to cause of action two.

Cause of Action Three

Defendant argues that the unfair competition claim under Business and Professions Code section 17200 claim fails because Plaintiff has not stated a claim under Civil Code section 2924c or 2924d. The Court agrees that this claim is dependent on Plaintiff stating a claim under Civil Code section 2924c.

Defendant also argues that Plaintiff has not sufficiently alleged damages to state a claim under section 17200. As to this argument, Plaintiff requests leave to amend to allege his damages. The Court grants Plaintiff's request.

The motion for judgment on the pleadings as to cause of action three is **granted** with leave to amend.

Judicial Notice

The parties' requests for judicial notice are granted.

11. 9:00 AM CASE NUMBER: C24-02896
CASE NAME: STEVEN SMITH VS. DONALD IWUCHUKWU
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: IWUCHUKWU, DONALD
TENTATIVE RULING:

Defendants, Donald Iwuchukwu and Metu C. Ogike move to stay this action, and simultaneously demur to the complaint filed by plaintiff, Steven A. Smith, Trustee of the Patricia Byrd Canson Living Trust, ("Plaintiff") dated August 13, 2023. The motion to stay is **denied** and the demurrer is **overruled**, as discussed below. Defendants shall file and serve their answers on or before June 8, 2026.

I. Background

Plaintiff is the brother of decedent, Patricia Byrd Canson, who died on August 17, 2023, at the age of 80, having no children and having been predeceased by her husband, Clarence.

Plaintiff filed this action in his capacity as trustee, on October 28, 2024 against the moving defendants and Aurin Canson. Plaintiff alleges that defendants conspired to (1) to convert funds from the estate and trust; (2) to challenge plaintiff's position as Trustee, and (3) hide the conversion and wrest control of Ms. Canson's estate and trust. (See Complaint, ¶¶14-15, 32, 49.)

Plaintiff alleges that Iwuchukwu, acting in the capacity of Ms. Canson's attorney with respect to a 2016 foreclosure of her home at 10 Powder Bowl Court in Richmond, used the representation as an opportunity to steal from Ms. Canson. For example, after the property was sold, Ms. Canson was charged a hold-back and 10% for attorney's fees, and Iwuchukwu arranged for a "certified check" to Ms. Canson for the excess amount. The check, which was dated March 9, 2017, was for \$204,347.50.

Ms. Canson did not ever cash the check. Instead, she informed plaintiff where he could find it in her home, which he did and confirmed by text message that he had found it. (Complaint, Ex. C.) Before it could be cashed, however, defendants withdrew the check. (Complaint, ¶¶57-63.)

Defendants, in addition to converting Ms. Canson's personal property directly, attempted to serve their own interests by fraudulently installing themselves as the representative, trustee, and/or beneficiary of Ms. Canson's estate and representing themselves and/or their agents as Ms. Canson's personal representative in dealing with third party financial institutions that hold Ms. Canson's property, and by creating a trust that names Donald Iwuchukwu as the trustee in order to bill the estate for their work, and by denying Ms. Canson and Ms. Canson's 2023 Trust and her heirs and beneficiaries the benefit of the *res* of the 2023 Trust. (Complaint, ¶65.)

In response to the complaint, defendants Iwuchukwu; Ogike; and Anyiam each brought an anti-SLAPP motion to strike the complaint, which were all denied by an Order filed on October 29, 2025, which was not appealed. Following the Order, Anyiam answered the complaint, but Iwuchukwu and Ogike filed this demurrer and motion to stay.

Plaintiff opposes the demurrer and the motion to stay. At the time of writing, no reply has

been filed.

II. Demurrer

A. Meet and Confer

Chijioke O. Ikonte, counsel for Iwuchukwu and Ogike submits his own declaration that conforms with the requirements of Code of Civil Procedure, § 430.41 (a)(3)(A). In other words, he states that a meet and confer was held by telephone with plaintiff's counsel, and no agreement was reached. The declaration, however, is **not signed**. An unsigned declaration is not competent evidence. (Code Civ. Proc., § 2015.5.) Still, considering that plaintiff does not dispute that the meet and confer occurred, and the Court assumes counsel would not have allowed the filing of the declaration unless it was accurate, the Court accepts defendants' counsel's representation as accurate.

B. Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.)

C. Analysis

1) Conversion of Personal Property (1st C/A)

a) Failure to State Sufficient Facts (Code of Civil Procedure § 430.10(e))

Defendants argue the first cause of action is insufficiently pleaded and uncertain. With respect to Ogike, they argue his specific acts are not described. No argument is presented with respect to Iwuchukwu.

As already held in the Court's October 29th Order, conversion has been sufficiently alleged. This tort requires (1) the plaintiff's ownership or right to possession of the property, (2) the defendant's conversion by a wrongful act or disposition of property rights, (3) damages. (*Burlesci v. Petersen* (1998) 68 Cal.App.4th 1062, 1066.) Plaintiff brings this action in his capacity of trustee of the 2023 trust, which confers upon him any rights held by the 2023 trust. The trust's property consisted, in part, of a check Ms. Canson had received from the foreclosure sale of her real property at 10 Powder Bowl Court, Richmond in 2017. Plaintiff alleges defendants converted that check, and that neither Ms. Canson nor her trust ever received the money. Accordingly, conversion has been adequately stated. (Complaint, ¶¶1, 13-14, 28-30, 33-35.)

As to the lack of specific factual allegations about the conspiracy, "[c]onspiracy is not a separate tort, but a form of vicarious liability by which one defendant can be held liable for the acts of another." (*IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 652, internal citations omitted.) Although the pleaded facts must show that something was done which, without the conspiracy, would give rise to a cause of action, the information and operation of a conspiracy may be alleged in general terms. Thus, general allegations such as that the defendants "did agree together" or the ultimate fact that the defendants "conspired together" to commit specified wrongful acts are sufficient to allege the conspiracy. (*Farr v. Bramblett* (1955) 132 Cal.App.2d 36, 47, disapproved on other grounds in *Field*

Research Corp. v. Superior Court of San Francisco (1969) 71 Cal.2d 110, 114; *Greenwood v. Mooradian* (1955) 137 Cal.App.2d 532, 535–537) Importantly, the acts constituting the conspiracy, as distinguished from the acts done pursuant to the conspiracy and inflicting the wrong, need not be alleged. (*Greenwood, supra*, 137 Cal.App.2d at 537–538.)

Here, in paragraph 49, the allegations directed at defendant Ogike are sufficient. Ogike is alleged to be “working with Defendant Iwuchukwu to hide this act of conversion and to wrest control of Ms. Canson’s estate (which includes the 2023 Trust) from Plaintiff in favor of [himself], Defendant Iwuchukwu and Defendant Aurin Canson.”

The demurrer to the first cause of action is **overruled** on this ground.

b) Uncertainty (Code of Civil Procedure § 430.10(f))

The demurrer to the first cause of action based on uncertainty is essentially unsupported by any separate argument. The above discussion of the proper pleading standard for conspiracy eliminates any need for further specificity. In any event, uncertainty is a disfavored ground for sustaining a demurrer, and a demurrer for uncertainty will be sustained only when the pleading is such that the responding party cannot even discern what it must respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.) The complaint here clearly meets that low bar. The Court expects that any lingering issues can be illuminated through discovery. (*Khoury v. Maly’s of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616 [“demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures”].)

The demurrer to the first cause of action is **overruled** on this ground.

c) Civil Code § 1714.10

Defendants assert that the complaint is barred based on Civil Code section 1714.10, which they misquote to their advantage without any ellipses or other indicators that they are misquoting the statute. (Memorandum of Points and Authorities in Support of Demurrer, 8:6-10.) The statute’s subdivision (a) actually provides, in relevant part:

(a) No cause of action against an attorney for a civil conspiracy with his or her client *arising from any attempt to contest or compromise a claim or dispute, and which is based upon the attorney’s representation of the client*, shall be included in a complaint or other pleading unless the court enters an order allowing the pleading that includes the claim for civil conspiracy to be filed after the court determines that the party seeking to file the pleading has established that there is a reasonable probability that the party will prevail in the action. [...]

(Civ. Code § 1714.10, italics added.)

Defendants’ argument fails for at least four reasons. First, omission of the italicized text in the above quotation is telling because the claims here do not arise from defendants’ representation, as already discussed in the Court’s October 29th Order.

Second, in a related point, the text of Civil Code section 1714.10, subdivision (c) states that “[t]his section shall not apply to a cause of action [...] where [...] the attorney’s acts go beyond the performance of a professional duty to serve the client and involve a conspiracy to violate a legal duty

in furtherance of the attorney's financial gain." According to the allegations of the complaint here, which we must accept as true, the facts clearly involve conspiratorial acts beyond the performance of a professional duty, which violate a legal duty in furtherance of the attorney's financial gain.

Third, defendants' failure to raise this defense earlier is a waiver of the defense, as described in subdivision (b), which states, in relevant part, that the failure to raise the defense upon an attorney/defendant's first appearance "shall constitute a waiver thereof." The anti-SLAPP motion constituted a first appearance and this statute was not raised there.

Finally, the required procedural step of obtaining a court order that "there is a reasonable probability that the party will prevail in the action" has already been obtained here by way of the October 29th Order denying the anti-SLAPP motion.

The demurrer to the first cause of action is **overruled** on this ground.

d) Agent Immunity Doctrine

Despite citing the agent immunity doctrine, no argument is advanced with respect to the concept as it applies to the allegations here. Accordingly, the Court construes this as an admission that the doctrine is not a ground for sustaining the demurrer. (See Rule of Court 3.1113(a) [court may treat the absence of a memorandum as a waiver of all grounds not supported].) In addition, the above discussion of Civil Code section 1714.10 reveals the reasons why the doctrine is inapplicable. Specifically, the acts alleged here are not alleged to be in any capacity as an agent. This is a factual inquiry not resolved on demurrer.

The demurrer to the first cause of action is **overruled** on this ground.

e) Claim Splitting

Defendants argue that plaintiff is attempting to split his claims by bringing this suit separately from the pending probate actions concerning the validity of certain trusts. Notably, the current case alleges causes of action for various torts, not anything concerning which trust is valid (the issue in various pending probate actions).

While there may be an overlapping determination with the probate actions (whether plaintiff has standing to sue as trustee, or in some other capacity, or whether a new plaintiff would need to pursue rights of trust, etc.), the potential for this overlapping fact is not a reason to prevent these claims from progressing. As pleaded, there are no allegations concerning the validity or lack thereof, of any trust. Therefore, the Court does not find, at least on demurer, that plaintiff is claim splitting.

The demurrer to the first cause of action is **overruled** on this ground.

2) Elder Abuse (2nd C/A)

Defendants argue the second cause of action is insufficiently pleaded and uncertain. As already addressed in the Court's October order, plaintiff has met his prima facie burden to show financial elder abuse. Each of the other grounds discussed with respect to conversion apply equally to this cause of action.

3) Interference with Inheritance (3rd C/A)

As already discussed in the Court's Order denying the anti-SLAPP special motion to strike, this

cause of action was sufficiently stated. Each of the other grounds discussed with respect to conversion apply equally to this cause of action.

III. Motion to Stay

Defendants have also moved to stay this action pending resolution of several probate matters and one forcible detainer matter. Plaintiff opposes the motion. The motion is **denied**.

Defendants' premise for a stay is that the "validity of the competing trust, to wit the 2023 Trust and 2017 Trust may justify or fail to justify the actions taken by defendants in this case." As pleaded, there are no allegations concerning the validity or lack thereof, of any trust. Further, as pointed out in a footnote, the surplus funds at issue here were not issued to a trust, but to decedent herself. The validity of competing trusts is not crucial to the outcome here. Should any determination regarding such validity be made in the probate cases, parties may provide it to the Court and the Court will address its effects at that time. A determination would not necessarily vindicate the defendants' actions in this case or resolve plaintiff's claims.

12. 9:00 AM CASE NUMBER: C24-02896
CASE NAME: STEVEN SMITH VS. DONALD IWUCHUKWU
***HEARING ON MOTION IN RE: TO STAY THIS ACTION PENDING RESOLUTION OF THE RELATED CONSOLIDATED ACTIONS**
FILED BY: IWUCHUKWU, DONALD
TENTATIVE RULING:

Please see Line 11.

13. 9:00 AM CASE NUMBER: C25-00404
CASE NAME: NATALIIA VIENTSKOVSKA VS. THEKEY MANAGEMENT, LLC
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JOSHUA I. WHITE**
FILED BY: VIENTSKOVSKA, NATALIIA
TENTATIVE RULING:

Summary

Plaintiff's counsel, Laurel Employment Law, PC, by and through Joshua I. White and Mae-Elaine Delos Santos ("Withdrawing Counsel") filed a Motion to Be Relieved as Counsel for Plaintiff Nataliia Vientkovska ("Motion"). The Motion is **granted** as set forth herein.

Background

This case alleges Labor Code violations by Plaintiff Vientkovska ("Plaintiff") against Defendant Thekey Management LLC. This matter is stayed pending arbitration. On December 4, 2025, Withdrawing Counsel filed a Motion to Be Relieved as Counsel, supported by her declaration claiming that "irreparable breakdown in the attorney-client relationship" has occurred. Withdrawing Counsel can no longer represent Plaintiff.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination “upon the consent of both client and attorney,” or “upon order of the court, upon the application of either client or attorney, after notice from one to the other.” Defendant’s Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Withdrawing Counsel. The Court acknowledges that the prejudice to Plaintiff is minimal, as there is ample time for Plaintiff to retain trial counsel, after arbitration or to represent herself.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Withdrawing Counsel to be Relieved as Counsel of Record. The makes the following orders:

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney’s Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted on December 4, 2025. The withdrawal is effective immediately.
3. Defendant’s Counsel is ordered to serve a copy of the Order (MC-053) to Plaintiff by mail at his last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill-out and file the change of address form with the Court.
4. The Court schedules a Case Management Conference for November 24, 2026 at 8:30 a.m. Withdrawing Counsel is ordered to provide notice to Plaintiff of this CMC, and to inform Plaintiff that she is ordered to appear.
5. Withdrawing counsel shall file a proof of service form indicating that the client was served with the Court’s Order (MC-053) and the Change of Address form (MC-040).

14. 9:00 AM CASE NUMBER: C25-00629
CASE NAME: THELMA ELLENBERGER VS. DELTA DENTAL
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: WESTERN DENTAL SERVICES, INC.

TENTATIVE RULING:

Before the Court is Defendant Western Dental Services, Inc. (“Defendant” or “Western Dental”)’s demurrer. The Demurrer relates to Plaintiff Thelma Ellenberger (“Plaintiff” or “Ellenberger”)’s complaint. Plaintiff is in *pro per*.

Defendant demurs to the Complaint on the grounds that Plaintiff’s medical malpractice claim is barred by the statute of limitations in Code of Civil Procedure section 430.10(e).

The Court notes that there is no proof of service accompanying the Plaintiff's opposition and Defendant avers on reply that they were not served in accordance with Code of Civil Procedure section 1005(b). The Court notes that "the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85.) While the Court is aware that Plaintiff is proceeding without an attorney in her lawsuit, she is once more cautioned that she is held to "the same 'restrictive procedural rules as an attorney'." (*Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121.)

For the following reasons, the Demurrer is **sustained**, with leave to amend.

Brief Factual Allegations

Plaintiff filed a form complaint on March 7, 2025 against Delta Dental and Western Dental. While the form complaint contains pages for motor vehicle, general negligence, intentional tort, premises liability, and products liability, the gravamen of the complaint is a medical malpractice claim against defendants related to a dental implant placed on December 27, 2023. She alleges that "[t]he implant was found to be crooked, the position of the implant is in a[n] angle." (Complaint—General Negligence.) She further alleges that the temporary front tooth she has causes her pain and discomfort.

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

Defendant argues that Plaintiff's complaint is barred by the statute of limitations in Code of Civil Procedure 340.5 of three years from injury or one year from discovery, whichever occurs first.

"In an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first. In no event shall the time for commencement of legal action exceed three years unless tolled for any of the following: (1) upon proof of fraud, (2) intentional concealment, or (3) the presence of a foreign body, which has no therapeutic or diagnostic purpose or effect, in the person of the injured person. Actions by a minor shall be commenced within three years from the date of the alleged wrongful act Such time limitation shall be tolled for minors for any period during which parent or guardian and defendant's insurer or health care provider have committed fraud or collusion in the failure to bring an action on behalf of the injured minor for professional negligence." (Code Civ. Proc., § 340.5.)

“‘[A] demurrer on the ground of the bar of the statute of limitations does not lie where the complaint merely shows that the action may have been barred. It must appear affirmatively that, upon the facts stated, the right of action is necessarily barred.’” (*Stueve Bros. Farms, LLC v. Berger Kahn* (2013) 222 Cal.App.4th 303, 313 [quoting *Baright v. Willis* (1984) 151 Cal.App.3d 303, 311] [citations omitted] [internal quotation marks omitted].)

“[S]tatutes of limitation do not begin to run until a cause of action accrues.” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806.) “[A] cause of action accrues at ‘the time when the cause of action is complete with all of its elements.’” (*Ibid.* [quoting *Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 397].). “An exception is the discovery rule, which postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action.” (*Norgart, supra*, 21 Cal.4th at p. 389.) “Under the discovery rule, the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her.” (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110.)

“In order to raise the issue of belated discovery, the plaintiff must state when the discovery was made, the circumstances behind the discovery, and plead facts showing that the failure to discover was reasonable, justifiable and not the result of a failure to investigate or act. Once belated discovery is pleaded, the issue of whether plaintiff exercised reasonable diligence in discovering the negligent cause of the injury is a question of fact.” (*Bastian v. County of San Luis Obispo* (1988) 199 Cal.App.3d 520, 527 [citations omitted].) “Once properly pleaded, belated discovery is a question of fact.” (*Ibid.*) A demurrer may be sustained only where “the trial court could determine as a matter of law that failure to discover was due to failure to investigate or to act without diligence.” (*Ibid.*)

Based on the date the implant was placed (December 27, 2023), Defendant argues that Plaintiff’s complaint had to have been filed within one year of that date. However, it is not clear to the Court that Plaintiff knew or should have known of her injury on that date. She alleges that the implant was “found to be crooked” and that “the position of the implant is in a[n] angle.” The face of the complaint is somewhat ambiguous as to when Plaintiff discovered these facts. The implication is that Plaintiff discovered the implant was crooked following the implant procedure. The date of that discovery is not clear. The Court cannot conclude that the Plaintiff’s claim is necessarily barred as a matter of law. That said, the Complaint fails to adequately allege delayed discovery. As a consequence, the Court sustains the Defendant’s Demurrer with leave to amend additional facts which would support a finding of belated discovery.

Defendant is ordered to prepare and e-file a proposed order that conforms to the tentative ruling within five days from the date of the hearing. Plaintiff shall file an amended complaint no later than ten (10) days from the Notice of Entry of Order.

15. 9:00 AM CASE NUMBER: C25-00629
CASE NAME: THELMA ELLENBERGER VS. DELTA DENTAL
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT**
FILED BY: WESTERN DENTAL SERVICES, INC.
TENTATIVE RULING:

Before the Court is Defendant Western Dental Services, Inc. (“Defendant” or “Western Dental”)’s motion to strike. The motion relates to Plaintiff Thelma Ellenberger (“Plaintiff” or “Ellenberger”)’s

complaint. Plaintiff is in *pro per*.

Defendants move to strike Plaintiff's punitive damages allegations on the grounds that she has not sought leave of court to assert punitive damages in an action arising out of professional negligence pursuant to CCP § 425.13(a) and her punitive damages allegations are insufficient under Civil Code § 3294.

The notice of motion to strike a portion of a pleading shall quote in full the portions sought to be stricken except where the motion to strike an entire paragraph, cause of action, count or defense. (CRC Rule 3.1322.)

Code of Civil Procedure section 435.5 requires that "[b]efore filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion to strike for the purpose of determining whether an agreement can be reached that resolves the objections to be raised in the motion to strike." (Code Civ. Proc. § 435.5, subd. (a), emphasis added.)

The meet and confer declaration of Joseph W. Gaertner filed with Western Dental in support of their demurrer satisfies the requirements of CCP § 435.5. The notice of motion, however, fails to comply with California Rule of Court 3.13.22(a). That said, the Plaintiff's form complaint is brief and identification of the punitive damages references therein is fairly straightforward.

For the following reasons, the motion is **granted**, with leave to amend.

Legal Standard

California Civil Code ("CC") § 3294 provides in relevant part:

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant...

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(CC § 3294.)

CCP § 436 provides:

The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436.)

Analysis

Western Dental seeks to strike Plaintiff's punitive damages allegations, as a plaintiff cannot seek punitive damages against a medical professional for actions arising out of professional negligence without leave of the court. (Code Civ. Proc. § 425.13.)

In *College Hospital*, the California Supreme Court determined that section 425.13 applies when punitive damages are sought for "any misconduct 'directly related to the professional services provided by the healthcare provider.'" (*College Hospital v. Superior Court* (1994) 8 Cal.4th 704, 714 [quoting *Central Pathology Service Medical Clinic, Inc. v. Superior Court* (1992) 3 Cal.4th 181, 189].)

Here, the misconduct alleged in the complaint appears to be directly related to Western Dental's rendering of professional services. Thus, Plaintiff must comply with the requirements of section 425.13 before seeking punitive damages on her claim for negligence.

However, intentional torts are not subject to this same requirement. (See *Unruh-Haxton v. Regents of University of California* (2008) 162 Cal.App.4th 343, 355-356 [patients' claims for fraud, conversion, and intentional infliction of emotional distress were related to wrongful intentional conduct, not mere negligence; see also *Perry v. Shaw* (2001) 88 Cal.App.4th 658, 669 [nothing in the legislative history of MICRA suggests the Legislature intended to exempt intentional wrongdoers from liability by treating such conduct as though it had been nothing more than mere negligence].)

Under the above case law, Plaintiff would appear to be able to seek punitive damages for her intentional tort claim, though the actual character of her intentional tort claim is not clear from her complaint.

Even so, there are insufficient factual allegations to support circumstances of fraud, malice or oppression on the part of this defendant. The mere fact that an intentional tort is alleged is not sufficient. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) Conclusory allegations of fraud, oppression and malice are not enough. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Here, Plaintiff's intentional tort claim is not adequately pleaded, and therefore does not support the claim for punitive damages.

Furthermore, when seeking punitive damages against a corporation like Defendant, Plaintiff must allege "advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud or malice ... on the part of an officer, director or managing agent of the corporation." (Civ. Code §3294.) There are no allegations in Plaintiff's complaint regarding the conduct of an officer, director, or managing agent of Western Dental. Accordingly, this requirement of pleading punitive damages against a corporation has not been satisfied. (See CCP § 3294(b).)

The Motion is **granted**, with leave to amend.

Defendant is ordered to prepare and e-file a proposed order that conforms to the tentative ruling within five days from the date of the hearing. Plaintiff shall file an amended complaint no later than ten (10) days from the Notice of Entry of Order.

16. 9:00 AM CASE NUMBER: C25-02664
CASE NAME: RACHEL LASSETER VS. MOUNTAIN WEST INDUSTRIAL, LLC
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: MOUNTAIN WEST INDUSTRIAL, LLC
TENTATIVE RULING:

Introduction

Before the Court is Mountain West Industrial, LLC (“Mountain West” or “Defendant”) Motion To Compel Plaintiff Rachel Lasseter (“Plaintiff”) to submit the claims she has asserted in her complaint before this Court to mandatory final and binding arbitration in accordance with the arbitration agreement between Plaintiff and the Defendant. Defendant further requests that this Court stay this action pending the resolution of arbitration.

Plaintiff argues that Defendant Mountain West’s Arbitration Agreement is unenforceable because it is unconscionable.

For the reasons described below, Defendant Mountain West’s Motion to Compel Arbitration of Plaintiff’s individual claims are **granted**. The Parties are ordered to submit this matter to arbitration in accordance with the terms of the Arbitration Agreement. The Court orders this matter to be **stayed in full**, pending conclusion of the arbitration.

Procedural Background

Plaintiff filed this action (the “Complaint”) on September 16, 2025, asserting individual and representative class action claims for (1) Failure to Pay Minimum Wage for All Hours Worked (Lab. Code §§ 1182.12, 1194, 1194.2, 1197 and 1197.1); (2) Failure to Pay Overtime Compensation (Lab. Code §§ 1194 and 1198); (3) Failure to Provide Meal Periods (Lab. Code §§ 226.7, 512, and IWC Wage Orders); (4) Failure to Provide Rest Periods (Lab. Code §§ 226.7, 512, and IWC Wage Orders); (5) Failure to Indemnify Necessary Business Expenses (Lab. Code § 2802); (6) Waiting Time Penalties (Lab. Code §§ 201-203); (7) Failure to Provide Accurate Wage Statements (Lab. Code § 226); (8) Violation of Unfair Competition Law (Bus. & Prof. Code § 17200, et seq.); and (9) Private Attorneys General Act (Lab. Code § 2698, et seq.). (Complaint ¶¶ 33-98.)

Plaintiff brings the first through eighth causes of action individually and as a class action on behalf of herself and certain current and former employees of MWI. (Complaint ¶ 2.) Plaintiff brings the ninth cause of action as a representative action under PAGA to recover civil penalties. (Complaint ¶ 3.)

Defendant filed the Motion to Compel Arbitration on November 7, 2025.

Factual Background

Defendant Mountain West Industrial, LLC (“Defendant” or “Mountain West”) employed Plaintiff Rachel Lasseter (“Plaintiff” or “Ms. Lasseter”) as a non-exempt employee from approximately June 2, 2023, to July 18, 2025. (Complaint, ¶ 8.) On May 16, 2025, two years into her employment and two months before her termination, Plaintiff signed an arbitration agreement (the “Agreement”) presented by Defendant as a condition of her continued employment. (Declaration of Tyler McMullin

("McMullin Decl."), Ex. A., p. 9.)

Legal Standard for Motions to Compel Arbitration

A motion to compel arbitration "is in essence a suit in equity to compel specific performance of a contract." (*Cal. Teachers Ass'n v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399, citation omitted.) "A party who files a motion to compel arbitration 'bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.'" (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580 quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) Whether or not the arbitration clause is governed by federal law, the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413 ("Rosenthal").)

Analysis

Defendant's Initial Burden

For arbitration to be compelled, the Court need only determine that (1) a valid agreement to arbitrate exists; and (2) the agreement to arbitrate encompasses the dispute at issue. (*Howsam v. Dean Witter Reynolds* (2002) 537 U.S. 79, 84.)

Here, Defendant Mountain West provides a copy of the Arbitration Agreement. (McMullin Decl., Ex. A.) Plaintiff does not dispute that this is a copy of the Contract or the Arbitration Agreement.

Defendant asserts that the scope of the Arbitration Agreement Plaintiff signed covers, "any and all controversies, claims, or disputes that I may have with the Company (including any Company employee, officer, director, trustee, shareholder or benefit plan of the Company, in their capacity as such or otherwise), arising out of, relating to, or resulting from my employment or relationship with the Company" between Plaintiff and Defendant Mountain West. (McMullin Decl. Ex. A.) Plaintiff does not dispute the scope of the Arbitration Agreement.

Defendant Mountain West has met its initial burden to establish the existence of the Arbitration Agreement. Accordingly, the burden now shifts to Plaintiff to present facts showing why the Arbitration Agreement should not be enforced.

Unconscionability

The "unconscionability doctrine 'has both a procedural and a substantive element.'" (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125.) "The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power. Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh or one-sided.'" (*Ibid.* quoting *Pinnacle, supra*, 55 Cal.4th at 246.)

"Both procedural and substantive unconscionability must be shown for the defense to be established, but 'they need not be present in the same degree.'" (*OTO, L.L.C.* 8 Cal.5th at 125.) "Instead, they are

evaluated on a 'sliding scale.'" (*Ibid.*) "[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to 'conclude that the term is unenforceable.'" (*Ibid.*) "Conversely, the more deceptive or coercive the bargaining tactics employed, the less substantive unfairness is required." (*Ibid.*)

"The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement." (*Ibid.* quoting *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 912.)

Procedural Unconscionability

Procedural unconscionability involves the components of "oppression" and "surprise." (*OTO, supra*, 8 Cal.5th at 126.) "Oppression arises from an inequality of bargaining power that results in no real negotiation and an absence of meaningful choice." (*Flores v. Transamerica HomeFirst, Inc.* (2001) 93 Cal.App.4th 846, 853.) Surprise, for purposes of procedural unconscionability, "involves the extent to which the supposedly agreed-upon terms are hidden in a prolix printed form drafted by the party seeking to enforce them." (*Ibid.*)

Minimal Oppression

A procedural unconscionability analysis 'begins with an inquiry into whether the contract is one of adhesion.'" (*OTO, L.L.C., supra*, 8 Cal.5th at 126 quoting *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113.) "An adhesive contract is standardized, generally on a preprinted form, and offered by the party with superior bargaining power 'on a take-it-or-leave-it basis.'" (*Ibid.* quoting *Baltazar v. Forever 21, Inc.* 2016) 62 Cal.4th 1237, 1245.)

Plaintiff argues that the Arbitration Agreement is procedurally unconscionable under the 'oppression' analysis because it is a contract of adhesion and in support of her argument points out that Defendant presented Plaintiff with the Agreement almost two years into her employment, after she was entrenched in her role and dependent on the job effectively presenting Plaintiff a coercive choice: sign or risk losing her livelihood. (Oppo at p. 3: 22-28.)

Defendant points out that California courts, however, have rejected this position, recognizing the "adhesive aspect of an agreement is not dispositive." (*Serpa v. Cal. Surety Investigations, Inc.*, (2013) 215 Cal.App.4th 695, 704.) "When . . . there is no other indication of oppression or surprise, 'the degree of procedural unconscionability of an adhesion agreement is low, and the agreement will be enforceable unless the degree of substantive unconscionability is high.'" (*Id.*)

Thus, at most, any procedural unconscionability is minimal, requiring a heightened showing of substantive unconscionability.

Substantive Unconscionability

Substantive unconscionability may be found where the substantive provisions of the agreement are so overly harsh or unreasonably favorable to the more powerful party that they undermine its neutrality. (*Sanchez, supra*, 61 Cal.4th at 910-11, 913; *Armendariz, supra*, 24 Cal.4th at 117.) Substantive unconscionability focuses on the substantive fairness of the terms and whether the

agreement is “unfairly one-sided.” (*Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064, 1071; *Baltazar v. Forever 21, Inc., supra*, 62 Cal.4th at 1248.) “The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement.” (*Sanchez, supra*, 61 Cal.4th at 911-12.)

“A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must be ‘so one-sided as to “shock the conscience.” [Citation omitted.]’” (*Pinnacle, supra*, 55 Cal.4th at 246 [quoting *24 Hour Fitness, Inc. v. Superior Court* (1998) 66 Cal.App.4th 1199, 1213].)

Lack of Judicial Review

Plaintiff posits that since the Agreement fails to mention whether the arbitrator’s decision can be appealed and because the arbitrator’s award is binding that the Agreement should be deemed substantively unconscionable. (Oppo at p. 4: 16-22.)

The California Supreme Court in *Pearson Dental* held that where non-waivable statutory rights are involved, courts have held that some kind of review must be permitted by the arbitration agreement. (*Pearson Dental Supplies, Inc. v. Super. Ct.* (2010) 48 Cal.4th 665, 680.)

Pearson Dental recognizes that “limited judicial review” is available when provided by statute which in that case was the prevalent sections of the California Code of Civil Procedure. (*Pearson Dental Supplies, Inc. v. Super. Ct.* (2010) 48 Cal.4th 665, 676.) Here, the FAA also provides such limited judicial review of arbitration awards in U.S.C §§ 10-11. In sum, statutory law for both the FAA and the CAA provides that there is a limited right to appeal an arbitrator’s decision regardless of the controlling Arbitration Agreement. (See *Hall St. Associates, L.L.C. v. Mattel, Inc.* (2008) 552 U.S. 576, 590; see also *Pearson Dental Supplies, Inc. v. Super. Ct.* (2010) 48 Cal.4th 665, 676.)

Pearson Dental further explained that “[a]ll we hold today is that in order for such judicial review to be successfully accomplished, an arbitrator . . . must issue a written arbitration decision that will reveal . . . the essential findings and conclusions on which the award is based” so that a review may be conducted. (*Pearson Dental, supra*, 48 Cal.4th at 678.) The subject Arbitration Agreement requires a written arbitration decision. (See McMullin Decl., Ex. A at p. 9.) The absence of a specific judicial review clause in the Agreement does not render this section substantively unconscionable.

Gives Arbitrator Authority to Determine Substantive Law

Plaintiff contends that an Arbitration Agreement may be deemed substantively unconscionable if it allows the arbitrator discretion to apply non-California law, particularly when such discretion results in the waiver of unwaivable rights under California statutes. (Oppo at p. 4: 25-27.)

However, Plaintiff’s stance is not supported by her two cited cases *Ajamian* and *Pinela*. *Ajamian* and *Pinela* found Arbitration Agreements unconscionable on the basis that the Agreements required the application of another state’s law which led to the waiver of California specific rights. (Opposition at pp. 4: 27-28 -5: 1-5.)

The facts in this case are distinguishable. Here, the Agreement states “the arbitrator shall have the authority [to] determine the substantive law that shall be applied to the claim(s) asserted.” (McMullin

Decl., Ex. A, p. 8.) The Agreement does not prohibit the arbitrator from applying California law. Rather, the Agreement establishes the arbitrator's delegated authority to determine and apply the applicable law in resolving the parties' dispute.

Plaintiff further contends that the provision therefore creates an impermissible risk that the arbitrator could select non-California law, or apply California law only in part, in a manner that limits or eliminates rights Plaintiff could not waive in court. (Oppo at p. 5: 15-17.) This contention is unsupported by any legal authority.

This contention does not render this section substantively unconscionable.

Overbroad as to Third Party Non-Signatories

Plaintiff also argues substantive unconscionability on the grounds that the Agreement extends arbitration rights beyond MWI to "any Company employee, officer, director, trustee, shareholder or benefit plan of the Company, in their capacity as such or otherwise" without requiring those same non-signatories to sign the Agreement or clearly assume reciprocal arbitration obligations. (Oppo at p. 6: 12-20.) Plaintiff relies on *Cook* for their argument. (Id.)

The *Cook* Court took exception to the lack of mutuality in the subject Arbitration Agreement because although the Agreement required Cook to arbitrate all disputes with USC and their related entities, the Agreement did not require USC's related entities to arbitrate their claims against Cook. (*Cook v. University of Southern California* (2024) 102 Cal.App.5th 312, 326.)

The facts here are different.

The Agreement provides that Plaintiff promises to arbitrate all employment related disputes with Mountain West "the Company" (including any company employee, officer, director, trustee, shareholder or benefit plan of the company, in their capacity as such or otherwise) arising out of, relating to, or resulting from Plaintiff's employment or relationship with the Company. (McMullin Decl., Ex. A, p. 8.) The Agreement makes the promise to arbitrate bilateral because it states that that the agreement to arbitration also applies to any disputes that the Company may have with Plaintiff. (Id.) Thus, the Arbitration Agreement is mutual in congruence with *Cook*.

On balance, Plaintiff has failed to meet his burden to show that the Arbitration Agreement should not be enforced due to unconscionability. Thus, Defendant's Motion to Compel Arbitration shall be granted.

Stay

Under the FAA, courts must stay an action where "the issue involved in such suit or proceeding is referable to arbitration under an arbitration "agreement." (9 U.S.C § 3.)

Independent of the CAA and FAA, courts have inherent authority to stay proceedings. (*Landis v. North American Co.* (1936) 299 U.S. 248, 254 ["the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants"]; *Nederlandse Erts-Tankersmaatschappij, N.V. v. Isbrandtsen Co.* (2nd Cir. 1964) 339 F.2d 440, 441 [no authority under 9 U.S.C. § 3 to stay action, but

stay permitted under district court's inherent power to control its docket]; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 ["Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency"].) Even assuming the CAA and FAA neither require nor authorize the court to stay the current claims, the Court would exercise its inherent authority to issue a stay.

The Arbitration Agreement expressly provides that it is governed by the Federal Arbitration Act. (McMullin Decl. ¶ 6, Ex. A at p. 7.) Under the Federal Arbitration Act, 9 U.S.C. section 1 et seq. (FAA), the court's only option in these circumstances is to stay the court proceeding and compel the arbitration. (*Rodriguez v. Am. Techs., Inc.* (2006) 136 Cal.App.4th 1110, 1115.)

Conclusion

Based on the analysis above, Defendant Mountain West's Motion to Compel Arbitration of Plaintiff's individual claims are **granted**. The Parties are ordered to submit this matter to arbitration in accordance with the terms of the Arbitration Agreement. The Court orders this matter to be **stayed in full**, pending conclusion of the arbitration.

A case management conference is scheduled for November 20, 2026 at 8:30 a.m. in Department 16 to follow-up on the status of arbitration. The Parties are ordered to appear remotely via Zoom and to prepare a case management conference statement advising on the status of arbitration. If arbitration is not concluded by that date, the parties can prepare a stipulation to continue the CMC to a future date.

17. 9:00 AM CASE NUMBER: C25-02721
CASE NAME: LUIS ARMENTA GOMEZ VS. PREYANKA KANDA
HEARING ON DEMURRER TO: CROSS-COMPLAINT
FILED BY: ARMENTA GOMEZ, LUIS RICARDO
TENTATIVE RULING:

Plaintiffs and Cross-Defendants Luis Ricardo Armenta Gomez ("Gomez"), Jesus Villa Cuevas ("Cuevas"), and Gloria Villa ("Villa" altogether, "Cross-Defendants") bring this demurrer to the cross-complaint ("Cross-Complaint") of Defendant and Cross-Complainant Preyanka Kanda ("Kanda" or "Cross-Complainant"). Cross-Defendants argue that the sole cause of action alleged in the Cross-Complaint, imposition of a resulting trust, fails to state sufficient facts to constitute a cause of action.

For the reasons discussed below, Cross-Defendants' demurrer to the Cross-Complaint's claim for imposition of a resulting trust is **OVERRULED** as to Cross-Defendants Cuevas and Villa and is **SUSTAINED** as to Cross-Defendant Gomez, with leave to amend.

Meet and Confer

The meet and confer requirement has been satisfied. (Gabriella Sembenini-Tato Decl., ¶¶ 6-8, Exhs. 3-4; Code Civ. Proc., § 430.41, subd. (a)(3)(B).) Cross-Complainant asserts that Cross-Defendants did not satisfy the meet and confer requirement. (Opposition, p. 1:17.) However, one way to satisfy the requirement is to show that the party subject to the demurrer failed to respond to a meet and confer request. (Code Civ. Proc., § 430.41, subd. (a)(3)(B).) Here, on December 22, 2025, Cross-Defendants

requested to meet and confer and it appears that Cross-Complainant failed to respond. (Gabriella Sembenini-Tato Decl., ¶¶ 6-8, Exhs. 3-4.) That the meet and confer effort took place the week of Christmas appears relevant, but there is no representation that counsel was out of the office that week and Cross-Complainant has fully briefed the Opposition. The Court cannot overrule a demurrer based on a failure to meet and confer, so the Court will proceed to analyze Cross-Defendants' demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4)). ("A determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.")

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We also accept as true facts which may be inferred from those expressly alleged." (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges "the sufficiency of the allegations in a complaint as a matter of law," not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Id.*, at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a "court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice." (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) "[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff." (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) "However, leave to amend should not be granted where, in all probability, amendment would be futile." (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

Background: Facts Alleged in Cross-Complaint & Complaint

Cross-Complainant and Gomez are former romantic partners. (Complaint, ¶ 12.) Around July 15, 2022, Cross-Complainant and Gomez acquired an interest in real property located at 509 Parker Avenue, Rodeo, CA 94572 (the "Property"). (Cross-Complaint, ¶¶ 6,8.) Around July 6, 2022, Cross-Complainant paid \$25,500 of her own money towards the down-payment for the Property. (*Id.*, at ¶ 9.) Around July 22, 2025, Cross-Complainant paid \$62,000 of her own money towards the down-payment for the Property. (*Id.*, at ¶ 10.) Also, around July of 2025, Gomez paid \$12,998.64 of his own money towards the down payment on the Property. (*Id.*, at ¶ 11.) The balance of the purchase price was secured by a purchase money first deed of trust that was recorded on July 22, 2022. (*Id.*, at ¶ 12.) Cross-defendants Cuevas and Villa co-signed loan documents in connection with the purchase of the Property, solely to assist with financing, and there was no intent for them to hold any legal, equitable, or beneficial interest in the Property. (*Id.*, at ¶ 13.) The entire down payment for the Property was paid exclusively by Cross-Complainant and Gomez. (*Id.*, at ¶ 15.) Cross-Complainant contributed a total sum of \$87,500.00 towards the down payment, and Gomez contributed a total sum of \$12,998.64 towards the down payment. (*Ibid.*) From July 2022, until August of 2024, Cross-

Complainant and Gomez shared the monthly mortgage payments equally. (*Id.*, at ¶ 16.) Neither Cuevas nor Villa made any financial contributions toward the down payment, purchase price, or any other expense related to the Property nor have either of them ever resided at or occupied the subject Property. (*Id.*, at ¶ 14.) Subsequent to these events taking place, the parties' relationship deteriorated. (Complaint, ¶ 16.)

On or about July 31, 2024, Gomez voluntarily vacated the Property and informed Cross-Complainant that he, along with Cuevas and Villa, irrevocably renounced and relinquished any and all right, title, interest, claim, obligation, or liability, whether legal or equitable, in or to the Property. (Cross-Complaint, ¶ 18.) Thus, since September 2024, to the present, Cross-Complainant has solely paid all expenses associated with the Property, including, but not limited to, the monthly mortgage payment, property taxes, homeowner's insurance, utilities, maintenance, repairs and improvements. (*Id.*, at ¶ 17.) Additionally, Cross-Complainant has been solely responsible for the general upkeep and non-financial obligations associated with maintaining the Property. (*Ibid.*)

On September 23, 2025, Cross-Defendants filed a lawsuit for partition by sale as they each seek to recover the value of their joint tenancy ownership in the Property. (Complaint, pp. 1-6.) On November 18, 2025, Cross-Complainant filed the Cross-Complaint at issue, asserting a single claim for imposition of a resulting trust. (Cross-Complaint, pp. 1-7.)

Discussion

Cross-Defendants argue that the Cross-Complaint fails because the sole cause of action, imposition of a resulting trust, is a remedy and not a cause of action. (MPA ISO Demurrer, pp. 2-4.) Cross-Defendants argue that a resulting trust is an intention-enforcing trust and that a demurrer must be sustained where no such common intent was alleged. (*Id.*, at p. 3.) "The Plaintiffs clearly had no intent to enter into an agreement that would give rise to a resulting trust." (*Ibid.*)

Cross-Complainant argues that the three appellate cases relied on by Cross-Defendants are distinguishable and that only one of them involved a resulting trust. (Opposition, pp. 4-6.) Cross-Complainant further argues that she has adequately alleged the elements of a resulting trust, and that factual disputes cannot be resolved on demurrer. (Opposition, pp. 7-9.)

On reply, Cross-Defendants argue that Cross-Complainant has not adequately pled the elements of a resulting trust claim. (Reply, pp. 1-2.) They also assert that there is no resulting trust here because Cross-Defendants had no intent to enter into such an agreement and there is no written agreement or shared intent to form a resulting trust. (*Id.*, at p. 2.) Finally, they repeat their argument that a resulting trust is a remedy and not a standalone cause of action. (*Id.*, at pp. 2-3.)

Resulting Trust

In this case, Cross-Defendants Cuevas and Villa co-signed loan documents for their son and his girlfriend in order to assist them with financing. (Cross-Complaint, ¶ 13.) They did not intend to hold any legal, equitable, or beneficial interest in the Property. (*Ibid.*) They have not made any payments towards the property and have never resided there. (Complaint, pp. 1-5; Cross-Complaint, ¶ 14.) Now, subsequent to their son and Cross-Complainant breaking up, defendants Cuevas and Villa, along

with their son, have filed an action for partition so that they can realize their alleged combined 75% interest in the Property. Cross-Complainant has filed a cross-complaint asserting a claim for imposition of a resulting trust, in an effort to protect her interest in the Property for which she has made the majority of payments.

“A resulting trust differs from an express trust chiefly in that (1) it arises by operation of law, without an expressed intent, and (2) the resulting trustee ordinarily has no duty other than to transfer the property to the person entitled. [Citations.]” (*In re Marriage of Ruelas* (2007) 154 Cal.App.4th 339, 342.) “Ordinarily a resulting trust arises in favor of the payor of the purchase price of the property where the purchase price, or a part thereof, is paid by one person and the title is taken in the name of another. The trust arises because it is the natural presumption in such a case that it was their intention that the ostensible purchaser should acquire and hold the property for the one with whose means it was acquired.” (*Martin v. Kehl* (1983) 145 Cal.App.3d 228, 238.)

“A resulting trust arises from a transfer of property under circumstances showing that the transferee was not intended to take the beneficial interest . . . [para.] It has been termed an ‘intention-enforcing’ trust, to distinguish it from the other type of implied trust, the constructive or ‘fraud-rectifying’ trust. The resulting trust carries out the inferred intent of the parties; the constructive trust defeats or prevents the wrongful act of one of them.’ ” (*American Motorists Ins. Co. v. Cowan* (1982) 127 Cal.App.3d 875, 884-885.)

Cause of Action versus Remedy

Cross-Defendants rely on a court of appeal case, *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 76, for its proposition that “[i]n their third amended complaint appellants alleged, as causes of action, a resulting trust and a constructive trust. But neither is a cause of action (5 Witkin, Cal. Procedure (3d ed. 1985) Pleading, §§ 788-791, pp. 232-235), only a remedy.” (MPA ISO Demurrer, p. 2.) However, this view is not unanimous in California courts, as even the California Supreme Court has stated what is needed to state a **cause of action** for resulting trust. (*Altramano v. Swan* (1942) 20 Cal.2d 622, 628 [“To state a cause of action . . . upon the theory of a resulting trust, one must allege either that he intended to create a trust or that he intended that the wife should not have the beneficial interest in the property.”].) Additionally, there are California Court of Appeal holdings that a resulting trust can be a cause of action. (*Fidelity National Title Ins. Co. v. Schroeder* (2009) 179 Cal.App.4th 834, 850 [“Allowing the judgment creditor to assert a resulting trust cause of action in this context would simply provide the mechanism for doing so under a well-established legal theory. In view of these several considerations, we . . . hold that Fidelity stated a cause of action for a resulting trust.”]; see also *Estate of Yool* (2007) 151 Cal.App.4th 867 [establishment of a resulting trust may be a cause of action, rather than merely a remedy].)

Here, in light of the split of authority in the Courts of Appeal and the California Supreme Court’s view being on the side of there being a cause of action for resulting trust, the Court will not sustain Cross-Defendants’ demurrer on this basis.

Elements of Resulting Trust Claim

Cross-Defendants also argue that Cross-Complainant has not stated sufficient facts to constitute a

cause of action for resulting trust. (MPA ISO Demurrer, p. 3:4-26; Reply, pp. 1:10-2:20.) They argue that there is no shared intent to create a resulting trust in this matter and that Cross-Defendants had no such intent. (MPA ISO Demurrer, p. 3.) They argue that Cross-Complainant's name is on the title, which means that she does not qualify for a resulting trust to be created. (*Ibid.*) Cross-Complainant argues that she has properly pled a cause of action for a resulting trust. (Opposition, pp. 7-8.)

"Ordinarily a resulting trust arises in favor of the payor of the purchase price of the property where the purchase price, or a part thereof, is paid by one person and the title is taken in the name of another." (*Martin v. Kehl* (1983) 145 Cal.App.3d 228, 238.) Here, the Cross-Complaint alleges that Cross-Complainant and Gomez made payments towards the purchase price of the Property. (Cross-Complaint, ¶¶ 9-11, 15, 16, 17.) The Cross-Complaint also alleges that neither Cuevas nor Villa, made any financial contributions towards the down payment, purchase price, or any other expense related to the Property, but that they were put on the title "solely to assist with financing" and that there was no intent for them to hold any legal, equitable, or beneficial interest in the Property. (*Id.*, at ¶¶ 13-14.) These allegations satisfy the requirements that the purchase price, or part thereof, is paid by one person and the title is taken in the name of another. When these allegations are combined with the maxim that "at the demurrer stage the complaint must be construed in the light most favorable to the plaintiff," the court finds that a resulting trust has been sufficiently pled, at least with respect to Cross-Defendants Cuevas and Villa. (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

However, with respect to Cross-Defendant Gomez, the Court finds that the Cross-Complaint is not sufficiently pled. The Cross-Complaint asserts a claim for resulting trust against Gomez, but he contributed money towards the Property's down payment and paid towards the monthly mortgage payments, making him a payor of the purchase price of the Property, which is a characteristic of those who a resulting trust typically arises in favor of. (Cross-Complaint, ¶¶ 11, 15, 16; *Martin v. Kehl* (1983) 145 Cal.App.3d 228, 238.) Further, the Cross-Complaint does not allege that there was no intent for Gomez to hold any legal, equitable, or beneficial interest in the Property. Thus, neither prong required for a resulting trust is satisfied as to Gomez and the cause of action for resulting trust against him is not sufficiently pleaded.

Ruling

Cross-Defendants' demurrer to the Cross-Complaint's claim for imposition of a resulting trust is **OVERRULED** as to Cross-Defendants Cuevas and Villa and is **SUSTAINED** as to Cross-Defendant Gomez, with leave to amend. Cross-Complainant may file and serve an amended complaint within 20 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

18. 9:00 AM CASE NUMBER: C25-03757

CASE NAME: CATHAY BANK, VS. CHRISTINA SEELYE

HEARING IN RE: APPLICATION FOR RIGHT TO ATTACH ORDER, ISSUANCE OF WRIT AFTER HEARING AS TO CHRISTINA SEELYE

FILED BY: CATHAY BANK

TENTATIVE RULING:

Plaintiff Cathay Bank's Application for a Writ of Attachment and Right to Attach Order is **granted**. The

amount to be secured is \$2,454,662.38, consisting of \$2,426,813.38 in principal and accrued interest, \$24,848.99 in estimated attorney fees, and \$3,000 in estimated costs. The Bank shall post an undertaking of \$10,000 before any writ shall issue.

Background and Procedural History

Plaintiff Cathay Bank (the "Bank") is a California banking corporation. Defendant Christina Seelye is the former CEO and a manager of Maximum Entertainment, LLC (formerly Maximum Games, LLC). Seelye co-founded the company in 2009 and served as CEO until her termination on October 1, 2024. (Seelye Decl. ¶¶ 2-3, 18.) Before the company's 2021 acquisition by Maximum Entertainment AB (the "Parent Company"), Seelye owned an 80% equity interest. (Seelye Decl. ¶ 5.) After the acquisition, Seelye retained her CEO role but held no equity in the borrower itself and only a 10% minority interest in the Parent Company. (Seelye Decl. ¶ 16.)

The Bank made two loans to Maximum Entertainment that are relevant here. The first was a revolving line of credit with a maximum principal of \$8 million ("RLOC"), governed by an Amended and Restated Loan and Security Agreement dated April 29, 2022, and extended via several amendments. (Scheiber Decl. ¶¶ 4-8, Exhs. 1-5, 7.) The fourth amendment, dated April 24, 2024, set the final loan maturity date as February 28, 2025. (Scheiber Decl. ¶ 8, Exh. 7.) The second was a \$3 million term loan made the same day, governed by its own Loan and Security Agreement and Promissory Note ("Term Loan"). (Scheiber Decl. ¶ 12, Exhs. 8-9.) The loans are cross defaulted in that Section 10.1(r) of the Term Loan Agreement defines an "Event of Default" to include any breach by Maximum Entertainment of any other obligation to the Bank, and Section 10.2(b) allows the Bank to accelerate the Term Loan on any Event of Default. (Scheiber Decl. ¶ 13, Ex. 8.) The Term Loan Agreement also defines an Event of Default to include Seelye ceasing to serve as CE and contains a severability clause at Section 11.5. (Scheiber Decl. ¶¶ 12-13, Exh. 8, § 10.1(t).) Seelye signed all of these documents as a representative of Maximum Entertainment. (Scheiber Decl. ¶¶ 10, 15.)

Seelye also signed a personal guaranty dated April 24, 2024 (the "Guaranty"), guaranteeing Maximum Entertainment's obligations under the Term Loan. (Scheiber Decl. ¶ 17, Ex. 10.) The Guaranty is unsecured. (Scheiber Decl. ¶ 17.) Section 6 contains waivers of Seelye's rights under Civil Code §§ 2787-2855, including her rights to require the Bank to proceed first against the borrower, or against any security for the term loan. (MPA at 7; Scheiber Decl. ¶ 17, Exh. 10, Sec. 6.)

What the Bank said about the effect of the Guaranty before Seelye signed it is disputed. On April 9, 2024, Maximum Entertainment's then-COO Thierry Bonnefoi emailed Cathay Bank Senior Vice President and Manager Jane Ho, recounting their prior day's conversation and asking three times for confirmation that the Guaranty would be waived if Seelye stopped being CEO.

What we discussed yesterday was that the personal guarantee would be waived if Christina is no longer the CEO. Is it what you are proposing? . . . Can you confirm my understanding that the guarantee will end with Christina's employment?

(Seelye Decl. ¶ 23, Exh. 1.)

On April 10, 2024, Ho replied without answering that question directly. Instead, she wrote the following:

Our Credit Officer wants to add the condition that term loan will become due immediately if Christina is no longer the CEO and guarantor. Key Management changes are considered a major business event and Christina is the key person we have trust on her capability and leadership. The legal process (assuming Christina is no longer the CEO) is we will demand the term loan to be paid off. If ME rejects to do so, we can call loan in default.

(Seelye Decl. ¶ 24, Exh. 2.)

Seelye argues she reasonably and detrimentally relied on these communications to understand that her guaranty would terminate with her employment. (Seelye Decl. ¶ 25.) She points to the Parent Company's April 24, 2024 board minutes, which recite the following:

Mrs. Seelye gives a personal guarantee to secure the loan as long as she is the CEO of the company, and that the loan be repaid immediately in the event Mrs. Seelye leaves the company for any reason.

(Seelye Decl. ¶ 26, Exh. 3.)

The Bank's officer Ho, in a declaration submitted with the Bank's reply brief, describes the same exchange differently. Ho states that in a phone call preceding the emails she told Bonnefoi she would ask senior bank management to release the Guaranty if Seelye ceased being CEO but gave no assurance that the Bank would approve such a request. (Ho Decl. ¶ 2.) Ho also states that after her emails she sent the "final approved term sheet," which provided:

Personal guarantee of Christina Seelye is required for the new term loan. Term loan to become immediately due and payable in the event Christina Seelye is not [sic] longer CEO of the Company and requests the release of her personal guaranty.

(Ho Decl. ¶¶ 2-3, Ex. 1.)

Bonnefoi's declaration submitted with the sur-reply states he was led to believe the Bank would honor a release request. (Bonnefoi Decl. ¶ 6.)

On October 1, 2024, Seelye emailed Ho the following:

Maximum Entertainment terminated my employment as CEO today. As a result, I am no longer able to provide a personal guarantee on the term loan with Maximum Entertainment LLC.

(Ho Decl. ¶¶ 4-5, Ex. 2.)

Ho replied the same day, copying Bonnefoi, that it would "be difficult for me to request removal" and that "[m]ost likely our Credit Officer will ask for early payoff on the term loan in order to remove your guarantee." (Ho Decl. ¶¶ 4-5, Exh. 2.) Two days later Bonnefoi emailed Ho asking how to "get Christina off the hook on the guaranty." (Ho Decl. ¶ 5, Ex. 2.) The Bank declined to release Seelye. (Ho Decl. ¶

6.) Seelye claims that after her termination she had no authority to manage or control the borrower's operations or to take any action to prevent or cure a default. (Seelye Decl. ¶¶ 19-20, 27-29.)

Maximum Entertainment failed to repay the RLOC by February 28, 2025, the final RLOC maturity date. (Scheiber Decl. ¶ 19.) On March 27, 2025, the Bank sent a notice declaring an Event of Default under the term loan based on the RLOC cross-default, accelerating the term loan balance, and imposing default interest. (Scheiber Decl. ¶ 20, Ex. 11.) Notably, it did not declare default based on Seelye ceasing to serve as CEO. (Scheiber Decl. ¶¶ 19-20; Supp. Scheiber Decl. ¶ 3.)

After the default notice, Seelye and the Bank signed a Pre-Negotiation Agreement (the "PNA") dated September 2, 2025, in which Seelye agreed that the "Loan Documents [defined to include the Term Loan Guaranty] remain unmodified and are in full force and effect" and that she was "bound to continue to pay and perform her obligations." (Supp. Scheiber Decl. ¶ 4, Ex. 1.) The Bank raised the PNA for the first time in its reply. Seelye filed a sur-reply in which she contends that she signed the PNA under duress because the Bank's David Scheiber refused to discuss any resolution of the default until she signed. She also states the Bank gave her no opportunity to consult counsel before signing. (Seelye Supp. Decl. ¶¶ 2-5.) Seelye states that the duress question "does not need to be decided by the Court at this time" and indicates she will develop the argument in opposition to the Bank's pending motion to compel judicial reference. (Sur-Reply at pp. 2-3 & n.1.)

As of January 7, 2026, the Bank claims it is owed \$2,426,813.38, consisting of \$2,249,899.42 in principal and \$176,913.97 in accrued interest, exclusive of attorney fees and costs. (Scheiber Decl. ¶ 24, Exhs. 14-15.)

Seelye holds title to a residence at 108 Greenbank Drive, Lafayette, in her capacity as trustee of the Seelye Family Trust, which is revocable. (Scheiber Decl. ¶ 21, Ex. 12.) Seelye claims the residence is community property held with her husband, who is not a party to the action. (Seelye Decl. ¶ 40.) The Bank seeks to attach the residence and any other assets within the categories listed in Code of Civil Procedure section 487.010(c).

Seelye filed a claim of exemption on the AT-155 Judicial Council form together with her opposition. The claim invokes three statutory grounds for exempting the residence: § 703.020 (residence is community property and her spouse is not a debtor), § 487.020(b) (property which is necessary for the support of the defendant and family), and the homestead exemption. (Claim of Exemption ("COE"), AT-155, ¶ 4(c)(1), (2), (5).) The claim describes the property as Seelye's "family residence" but does not attach a financial statement substantiating property value, encumbrances, or containing "necessary for support" facts. In lieu of attaching a fully completed financial statement, the claim asserts that Seelye "cannot attach a financial statement publicly because she is in negotiations and litigation with Borrower but is willing to provide financial information for in camera review by the Court." (COE, AT-155, ¶ 4(c)(2).) (Seelye's claim of exemption identifies the homestead exemption as "CCP 704.020," which appears to be in error. Section 704.020 is the household furnishings and personal effects exemption, while the homestead exemption is found in sections 704.710-704.730. The Court construes Seelye's claim as one made under sections 704.710-704.730, consistent with the

manner in which the Bank's opposition treats the claim.)

The Bank filed the complaint in this action on December 22, 2025, in which it asserts a single cause of action for breach of guaranty. It filed the present Application Writ of Attachment and for Right to Attach Order ("Application") on January 15, 2026, and served Seelye on January 22, 2026. (Bank's Opp. to COE, p. 2, n.1.) Seelye appeared on March 20, 2026, when she filed a demurrer to the complaint, which is set for hearing on September 9, 2026. Seelye filed her opposition and claim of exemption on May 6, 2026. The Bank filed its reply on May 11, 2026, accompanied by a supplemental declaration from David Scheiber, a declaration from Jane Ho, and evidentiary objections to Seelye's declaration. The Bank separately filed a written opposition to Seelye's COE on the same day. On May 20, 2026, Seelye filed a request to file a sur-reply with her own supplemental declaration and a declaration from Bonnefoi, or alternatively to present those arguments and evidence at the hearing. The hearing, originally set for May 13, 2026, was continued on the Court's motion to May 27, 2026.

The Bank filed a separate suit against the borrower in Los Angeles Superior Court (*Cathay Bank v. Maximum Entertainment, LLC*, No. 26STCV12508) on April 14, 2026, and filed a Notice of Related Case in this action on April 22, 2026. (Vega Decl. ¶¶ 3-4, Exhs. 4-5.)

Law of Attachment

"Attachment is a prejudgment remedy that allows a creditor to have a lien on the debtor's assets until final adjudication of the claim sued upon." (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2020) 19:853, p. 9(11)-113.) Determinations made in attachment proceedings "shall not be given in evidence nor referred to at the trial." (Code Civ. Proc. § 484.100.)

A party applying for a right to attach order and writ of attachment (Code Civ. Proc. § 484.010) bears the burden of establishing four elements: (1) its claim is for money "based upon contract, express or implied" (§ 483.010(a)); (2) its claim is "probably valid" (§ 484.050, subd. (b)); (3) the attachment is sought for a proper purpose, i.e., "recovery on the claim" rather than harassment (§ 484.090(a)(3)); and (4) the amount to be secured is "readily ascertainable" and greater than \$500 (§ 483.010(a)). (See *Goldstein v. Barak Construction* (2008) 164 Cal.App.4th 845, 852.)

Probable validity means "it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." (Code Civ. Proc. § 481.190.) Probable validity findings are often based on disputed findings of fact and reviewed for substantial evidence. (*Santa Clara Waste Water Co. v. Allied World National Assurance Co.* (2017) 18 Cal.App.5th 881, 885.)

If attachment is sought against a "natural person," the applicant also must demonstrate the contract claim arises out of the individual's "trade, business, or profession." (Code Civ. Proc. § 483.010(c).)

The amount to be secured by the attachment is the sum of (1) the amount of the defendant's indebtedness claimed by the plaintiff, and (2) any additional amount included by the court for estimate of costs and any allowable attorneys' fees under Code of Civil Procedure section 482.110. (Code Civ. Proc. § 483.015(a); *Goldstein v. Barak Construction*, supra, 164 Cal.App.4th at 852.) This amount must be reduced by the sum of (1) the amount of indebtedness that the defendant has in a

money judgment against plaintiff, (2) the amount claimed in a cross-complaint or affirmative defense and shown would be subject to attachment against the plaintiff, and (3) the value of any security interest held by the plaintiff in the defendant's property, together with the amount by which the acts of the plaintiff (or a prior holder of the security interest) have decreased that security interest's value. (Code Civ. Proc. § 483.015(b).) A defendant claiming that the amount to be secured should be reduced because of a cross claim or affirmative defense must make a prima facie showing that the claim would result in an attachment against the plaintiff.

The court "shall issue a right to attach order" if the moving party establishes each required showing. (Code Civ. Proc. § 484.090(a).) "If the right to attach order is issued, a writ of attachment will be issued to attach the property described in the plaintiff's application unless the court determines that such property is exempt from attachment or that its value clearly exceeds the amount necessary to satisfy the amount to be secured by the attachment." (*Id.* § 484.050(d).)

Before the issuance of a writ of attachment, the plaintiff is required to file an undertaking to pay the defendant any amount the defendant may recover for any wrongful attachment by the plaintiff in the action. (Code Civ. Proc. § 489.210.) The undertaking ordinarily is \$10,000. (*Id.* § 489.220.) If the defendant objects, the court may increase the amount of undertaking to the amount determined as the probable recovery for wrongful attachment. (*Id.* § 489.220.)

A. Procedural Matters

Seelye's Request to File a Sur-Reply

As a preliminary matter, the Court addresses Seelye's May 20, 2026 request for leave to file a sur-reply and to submit a supplemental declaration from Seelye and a declaration from Thierry Bonnefoi.

The Bank's reply, filed May 11, 2026, introduced new evidence not submitted with the original Application. The reply attached the PNA and a supplemental declaration from David Scheiber discussing it, along with a declaration from Jane Ho describing pre-signing and post-termination communications with Seelye and Bonnefoi, and a supplemental statement from Scheiber regarding the reasons for Seelye's termination. The Bank uses this new evidence to advance arguments not made in its moving papers, including that the PNA estops Seelye from contesting the enforceability of the Term Loan Guaranty.

Generally, new evidence and arguments raised for the first time on reply are improper because the opposing party lacks an opportunity to respond. (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-38.) Where a moving party does introduce such material on reply, the court has discretion to disregard it, or to permit a sur-reply so the opposing party may respond. Permitting a sur-reply is the appropriate course here as it promotes resolution on a complete record.

The Court therefore grants Seelye's request and considers the sur-reply and supporting materials.

Evidentiary Matters

Seelye's May 11, 2026 objections to the Declaration of Jane Ho and Supplemental Declaration of David

Scheiber in support of reply are **overruled**.

Cathay Bank's May 11, 2026 objections to the Declaration of Christine Seelye are **sustained** as to paragraphs 21-22 (foundation), 25 (improper opinion as to "reasonably"), 33 (hearsay), 34-35 (hearsay and lack of personal knowledge), 39 (foundation), and 41 (improper opinion as to "unjust under the circumstances"). The remaining objections are **overruled**.

B. Money Claim, Amount to be Secured, and Trade or Business

The Bank's claim is for money based on the Term Loan Guaranty, a written contract dated April 24, 2024, in which Seelye unconditionally guaranteed Maximum Entertainment's obligations under the term loan. (Scheiber Decl. ¶ 17, Exh. 10; see Civ. Code § 2837 [guaranty is a contract].) The amount sought is \$2,426,813.38, consisting of \$2,249,899.42 in principal and \$176,913.97 in accrued interest as of January 7, 2026, all readily ascertainable. (Scheiber Decl. ¶ 24, Exhs. 14-15.) Seelye does not dispute the calculation. The amount to be secured, including \$24,848.99 in estimated attorneys' fees and \$3,000 in estimated costs under the Guaranty's fee-shifting provision, is \$2,454,662.38. (Scheiber Decl. ¶¶ 17, 27-28, Exh. 10 [Guaranty ¶¶ 3, 21].) Code of Civil Procedure section 483.015(a) authorizes inclusion of fees and costs in the amount secured; the estimates are reasonable and unchallenged.

Because Seelye is a natural person, the Bank must also show its claim arises from her conduct of a trade, business, or profession. (Code Civ. Proc. § 483.010(c).) To obtain a right to attach order against a guarantor, the plaintiff must show that the defendant's guarantee of an entity's debt sued upon "is part and parcel of an activity which occupies the time, attention and effort of the guarantor[s] for the purpose of livelihood or profit on a continuing basis." (*Advance Transformer Co. v. Superior Court* (1974) 44 Cal.App.3d 127, 144.)

When Seelye signed the Guaranty, she was the borrower's CEO and a manager with authority to borrow money and otherwise act on the company's behalf. (Scheiber Decl. ¶¶ 10, 15, 29-32.) Her 2023 federal tax return reflects \$582,009 in wages from Maximum Entertainment, and her personal financial statement shows an ownership interest in the parent corporation. (Scheiber Decl. ¶¶ 29-32.) Seelye notes that by April 2024 she held no direct equity in the borrower and only a 10% minority stake in the parent. (Opp. at 3; Seelye Decl. ¶ 16.) Here, the Court finds that Seelye's CEO role, her annual wages from the borrower, and her parent-company equity together satisfy the *Advance Transformer* test.

C. Probable Validity

A claim has probable validity when it is more likely than not that the plaintiff will prevail on its claim. (Code Civ. Proc. § 481.190; *Kemp Bros. Construction, Inc. v. Titan Electric Corp.* (2007) 146 Cal.App.4th 1474, 1476.) To make that determination, the court considers "the relative merits of the positions of the respective parties and make[s] a determination of the probable outcome of the litigation." (*Loeb & Loeb v. Beverly Glen Music, Inc.* (1986) 166 Cal.App.3d 1110, 1120; *Kemp Bros.*, *supra*, 146 Cal.App.4th at pp. 1481-1482.)

1. The Bank's prima facie case for breach of guaranty

The elements of a breach of guaranty claim are (1) a valid guaranty, (2) default by the principal obligor, and (3) the guarantor's failure to perform under the guaranty. (*Gray1 CPB, LLC v. Kolokotronis* (2011) 202 Cal.App.4th 480, 486.) Each element is established on the record.

The first element is satisfied by the Term Loan Guaranty. The Guaranty is a written agreement dated April 24, 2024, signed by Seelye personally, in which she "unconditionally guaranteed and agreed to pay to the Bank, on demand, all amounts owed under the Term Loan." (Scheiber Decl. ¶ 17, Exh. 10.) The document is on its face a personal guaranty given to induce the Bank to make the term loan to Maximum Entertainment. Seelye challenges the Guaranty's enforceability but does not dispute that she signed it or that it bears her signature.

To the extent Seelye suggests in her opposition that she signed the Guaranty "in her capacity as the Borrower's CEO and Manager" rather than personally (Opp. at 8), the argument is unpersuasive. By its terms, the Guaranty is a personal undertaking. Its operative language ("Guarantor unconditionally guaranteed and agreed to pay") and its purpose (to induce the Bank to extend credit to a corporate borrower) make sense only if Seelye assumed personal liability. If Seelye signed solely in a representative capacity, the Guaranty would add nothing to the borrower's existing obligations and would render the Guaranty effectively meaningless. (See *Sebastian Int'l v. Peck* (1987) 195 Cal.App.3d 803, 809 [rejecting claim that corporate officer signed guaranty only in representative capacity where such interpretation would render guaranty a nullity].) Seelye identifies no language in the Guaranty supporting her interpretation and no evidence, other than the fact that she separately executed the loan documents on the borrower's behalf, that the parties intended the Guaranty to be anything other than a personal obligation.

The second element is also undisputed. Maximum Entertainment failed to repay the RLOC by its February 28, 2025 final maturity date. (Scheiber Decl. ¶ 19.) That non-payment constituted an Event of Default under the RLOC loan documents and, through the cross-default provision in § 10.1(r) of the Term Loan Agreement, also constituted an Event of Default under the Term Loan. (Scheiber Decl. ¶¶ 13, 19, Exh. 8.) Section 10.2(b) of the Term Loan Agreement allows the Bank to accelerate the term loan on any Event of Default. (Scheiber Decl. ¶ 13, Exh. 8.) The Bank exercised that right by written notice dated March 27, 2025, accelerating the full balance and imposing the default rate. (Scheiber Decl. ¶ 20, Exh. 11.) Seelye does not dispute that the RLOC was unpaid, that the cross-default provision was triggered, or that the Bank gave proper notice of acceleration. She observes that the Bank had "previously routinely extended the maturity date of the RLOC" (Opp. at 5), but offers no theory under which prior extensions created any obligation to extend further.

The third element is established by Seelye's non-payment. Under Civil Code section 2807, a guarantor "who has assumed liability for payment or performance is liable to the creditor immediately upon the default of the principal, and without demand or notice." Once Maximum Entertainment defaulted and the Bank accelerated, Seelye's payment obligation became due.

The Bank's prima facie case is therefore complete and largely uncontested at the operative level. The

contested ground concerns whether one or more defenses defeat the enforceability of the Guaranty as written.

2. The key person default provision

Seelye argues that the Term Loan Agreement provision defining "Events of Default" to include her ceasing to serve as Borrower's CEO is void as against public policy under the restraint-of-trade doctrine, and that this defect renders the Term Loan Guaranty unenforceable in its entirety. (Opp. at 9-10, citing *California Bank & Trust v. DelPonti* (2014) 232 Cal.App.4th 162, 167 (DelPonti); Civ. Code § 1667; *WRI Opportunity Loans II, LLC v. Cooper* (2007) 154 Cal.App.4th 525, 544.)

The Court does not reach whether the key person provision is enforceable, as Seelye's argument fails on two independent grounds.

First, the Bank did not declare default because Seelye ceased to be CEO. The March 27, 2025 default notice rests on the borrower's failure to repay the cross-defaulted RLOC by maturity. (Scheiber Decl. ¶¶ 19-20, Exh. 11; Supp. Scheiber Decl. ¶ 3.) The Bank's acceleration of the term loan was triggered by the cross-default under § 10.1(r). Even if the key person provision were void, removing it from the Term Loan Agreement would leave the cross-default trigger in place, and Seelye's liability under the Guaranty would not change.

Second, the key person provision is severable. Section 11.5 of the Term Loan Agreement provides that any provision held void or unenforceable "shall not affect the remainder of this Agreement, which shall continue in full force and effect." (Scheiber Decl. ¶ 12, Exh. 8.) Civil Code section 1599 states: "[w]here a contract has several distinct objects, of which one at least is lawful, and one at least is unlawful, in whole or in part, the contract is void as to the latter and valid as to the rest." Severance is appropriate where "the illegality is collateral to the main purpose of the contract, and the illegal provision can be extirpated from the contract by means of severance or restriction." (*Marathon Entertainment, Inc. v. Blasi* (2008) 42 Cal.4th 974, 996.) The overarching inquiry is whether the interests of justice would be furthered by severance. (*Ibid.*)

Severance appears appropriate here. The key person provision is one of many default triggers in a 30-page loan agreement. It is collateral to the agreement's main purpose, which was to set the substantive terms of the \$3 million term loan. Severing the key person provision leaves the rest of the agreement intact, including the cross-default trigger that the Bank invoked. The Court does not find it just to allow Seelye to avoid liability by arguing that one allegedly flawed default provision wipes out the entire Guaranty.

3. The pre-signing communications and reasonable reliance

Seelye argues that the Bank, through Jane Ho, led her and Bonnefoi to believe in the days before signing that the Guaranty would terminate if she stopped being CEO, and that her reasonable reliance on that representation bars enforcement now. (Opp., pp. 4-5, 9-11.) She invokes the doctrine of unclean hands, the implied covenant of good faith owed by a creditor to a guarantor, and absence of mutual assent. (*Id.*, pp. 10-11.)

Seelye's case turns on three documents: Bonnefoi's April 9 email asking three times whether the Guaranty would be waived if Seelye left as CEO, Ho's April 10 reply, which described an acceleration mechanism without saying yes or no to the waiver question, and the April 24 Parent Company board minutes, which recited that Seelye would guarantee the loan "as long as she is the CEO" with the loan to be "repaid immediately" upon her departure. Read together, these documents support Seelye's account that Bonnefoi and the parent company believed the deal was a CEO-tenured guaranty with acceleration as the Bank's remedy on departure. Her opposition points to Ho's "no longer the CEO and guarantor" phrasing as presupposing a future state in which Seelye is not a guarantor and points out that Ho's description of "legal process" tracks the Bank's recourse against the borrower rather than against a guarantor. A reader of just these three documents could conclude that the parties shared an understanding the Guaranty would end with Seelye's CEO role.

The problem is that these foregoing documents do not constitute the entire record. After the April 10 email exchange, Ho sent the final approved term sheet. It states that Seelye's personal guaranty is required for the loan and that the loan becomes immediately due if Seelye both ceases to be CEO and requests release of her guaranty. The acceleration trigger is conjunctive, requiring both departure and a request to be released. The inclusion of a mechanism to request release is inconsistent with automatic release. If the agreement provided that the Guaranty terminated upon Seelye's departure alone, there would be no reason for it. The term sheet was the last document sent before Seelye signed the Guaranty, and Seelye does not address it.

The Guaranty Seelye signed contains no provision tied to her employment and no provision waiving liability upon her cessation as CEO. (Scheiber Decl. ¶ 17, Exh. 10.) Section 6 includes waivers of statutory guarantor protections under Civil Code sections 2787–2855. Seelye states that she is a 20-year banking client of Cathay Bank, the co-founder of the borrower, and had previously personally guaranteed loans to the same company. (Seelye Decl. ¶¶ 2, 6, 8.) The absence of any termination or release provision in the executed Guaranty is notable in this context. Reliance on pre-contractual email language to vary the plain terms of a signed, unconditional guaranty would not be reasonable for a guarantor of Seelye's apparent sophistication.

October 1, 2024 communications are inconsistent with Seelye's position. Seelye emailed Ho that she was "no longer able to provide a personal guarantee" and asked to "discuss options." That language presupposes the continued existence of an operative guaranty. Ho responded the same day, confirming the Bank's position that any release would require an affirmative request and would likely be conditioned on early payoff. Neither Seelye nor Bonnefoi responded by claiming that the guaranty had automatically terminated upon Seelye's departure. Two days later, Bonnefoi asked the Bank how to "get Christina off the hook on the guaranty." That phrasing reflects an understanding that she remained obligated. It also came from the same individual who, according to Seelye, had previously conveyed that the guaranty would be released upon her departure.

The October emails are more probative of the parties' understanding because they were written by Seelye and Bonnefoi in real time during the dispute over release of the guaranty. The Parent Company's April 24, 2024 board minutes state that "Mrs. Seelye gives a personal guarantee to secure

the loan as long as she is the CEO of the company, and that the loan be repaid immediately in the event Mrs. Seelye leaves the company for any reason.” (Seelye Decl. ¶ 26, Exh. 3.) Those minutes reflect the Parent Company’s internal description of the transaction and are not shown to have been communicated to, or adopted by, the Bank. Moreover, by October, Seelye and Bonnefoi were communicating with the Bank on the assumption that the guaranty remained in effect and seeking its release. That course of conduct is difficult to reconcile with the April board minutes.

4. Loss of control after termination

Seelye cites no authority for this proposition, and the argument is inconsistent with basic principles of suretyship. A guarantor is liable upon the principal’s default without demand or notice. (Civ. Code, § 2807.) The Guaranty is unconditional on its face and contains no provision tying liability to Seelye’s continued employment, control of the borrower, or ability to influence its performance. (Scheiber Decl. ¶ 17, Exh. 10.) Nothing in the consideration for the Guaranty required Seelye to retain control of the borrower after execution, and the Court declines to adopt Seelye’s theory.

5. The Pre-Negotiation Agreement and claimed duress

The Bank’s reply relies on the PNA that Seelye signed after the default declaration, in which she agreed that the "Loan Documents [defined to include the Term Loan Guaranty] remain unmodified and are in full force and effect" and that she was "bound to continue to pay and perform her obligations." (Supp. Scheiber Decl. ¶ 4, Exh. 1.) The Bank argues this acknowledgment estops Seelye from contesting enforceability, citing Evidence Code § 622 and *Plaza Freeway Ltd. Partnership v. First Mountain Bank* (2000) 81 Cal.App.4th 616, 626. Seelye responds in her sur-reply that she signed the PNA under economic duress. She states that David Scheiber refused to discuss any resolution of the default unless she signed the PNA and that the Bank gave her no opportunity to consult counsel before signing. (Seelye Supp. Decl. ¶¶ 2-5.)

The Court has already found the Guaranty independently enforceable, and the PNA is one more piece of evidence to support that conclusion. Months after the default, Seelye signed a document acknowledging that the Guaranty was still in force and that she remained bound. She does not deny signing the PNA. The duress argument rests on two facts. Scheiber refused to negotiate without it and that she had no lawyer present. Seelye also expressly states that the duress question "does not need to be decided" now, reserving it for opposition to the Bank’s pending Motion to Compel a Judicial Reference. (Sur-Reply at 2-3, n.1.) The Court will take Seelye at her word. As the record stands, the PNA is evidence of Seelye’s post-default acknowledgment that she remained bound by the Guaranty.

D. Procedural Objections

Seelye raises three procedural objections to the issuance of an RTAO. She argues that her pending demurrer precludes a finding of probable validity, that the Bank’s separate suit against the borrower requires denial or a stay, and that the Bank must first proceed against the borrower’s collateral. None has merit.

1. The pending demurrer

Seelye argues that her demurrer, set for hearing on September 9, 2026, precludes a finding of probable validity because it raises challenges to the Guaranty's enforceability that have not yet been resolved. (Opp. at 9-11.) Probable validity asks the court to weigh "the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation." (*Loeb & Loeb, supra*, 166 Cal.App.3d at 1120.) The Court has done that in section C. The Court is not persuaded that Seelye's pending demurrer should change anything, because if it did, any defendant could defeat an attachment by filing a demurrer.

2. The separate action against Maximum Entertainment

Seelye argues that the Bank's separate lawsuit against Maximum Entertainment in Los Angeles Superior Court requires denial of this application or, at minimum, a stay pending resolution of that case. (Opp. at 11-13.) She argues the case may resolve the validity of the debt, the amount owed, and any borrower defenses, and that resolving the attachment before those issues are decided risks inconsistent rulings.

It is settled that a principal obligor and a guarantor may be sued separately or jointly, at the creditor's option. (*Ralston-Purina Co. v. Carter* (1962) 210 Cal.App.2d 372, 380-381; *Rice Securities Co. v. Daggs* (1923) 63 Cal.App. 273, 276.) Consistent with this, section 6(g) of the Guaranty expressly waives Seelye's right "to require Lender to proceed against Borrower." (Scheiber Decl. ¶ 17, Exh. 10.)

Staying this proceeding pending resolution of the borrower case would also frustrate the purpose of the attachment remedy, which is "to ensure that the alleged debtor's assets are not dissipated prior to the time the creditor can obtain and enforce the anticipated judgment on his claim." (*North Hollywood Marble Co. v. Superior Court* (1984) 157 Cal.App.3d 683, 690.) If the case against the borrower ultimately reduces the amount owed or establishes defenses affecting Seelye's liability, the attachment can be modified or released at that time.

3. Requirement to proceed against collateral

Seelye argues that the Bank cannot proceed against her until it has exhausted the collateral the borrower gave to secure the Term Loan. (Opp. at 11-12.) She acknowledges that the Guaranty contains waivers but claims they are not dispositive in the attachment context, citing *DelPonti*, 232 Cal.App.4th at 167-68.

A writ of attachment may issue on a guaranty, regardless of whether the principal loan is secured, so long as the guarantor has waived the right to require the creditor to proceed first against the security given for the primary obligation. (See *Engelman v. Bookasta* (1968) 264 Cal.App.2d 915, 917-918 [where guarantor waives rights arising from existence of security given by debtor, guarantor's obligation is unsecured and creditor can obtain attachment order against guarantor]; *American Guaranty Corp. v. Stoddy* (1964) 230 Cal.App.2d 390, 396.) Section 6(h) and (i) of the Guaranty waive Seelye's rights "[t]o receive the benefit of or to participate in any and all security for repayment and/or performance of the Credit" and "[t]o have any security for the Credit first applied to satisfy or discharge the Credit." (Scheiber Decl. ¶ 17, Exh. 10.) Those waivers are authorized by Civil Code section 2856(a). The Bank is therefore entitled to a writ of attachment against Seelye if it satisfies the

requirements of section 484.090.

DelPonti does not assist Seelye. It held that a general waiver of "all defenses" does not extend to equitable defenses arising from the creditor's own willful misconduct, such as unclean hands. (*DelPonti*, 232 Cal.App.4th at p. 167.) Seelye does invoke unclean hands, predicated on the Bank's pre-signing communications and her asserted reliance that the Guaranty would end if she ceased to be CEO. (Opp. at 10-11.) As discussed above, the Court has already concluded that Seelye's reliance theory does not defeat probable validity on the record before it.

E. Proper Purpose

The Bank must show the attachment "is not sought for a purpose other than the recovery on the claim upon which the request for attachment is based." (Code Civ. Proc. § 484.090(a)(3).) The Bank holds an unpaid personal guaranty for over \$2.4 million on which Seelye is liable under Civil Code section 2807, and it seeks security for an anticipated judgment on that guaranty. That is the purpose for which attachment exists.

Seelye contends the Bank's conduct toward her is "at best, improper and, at worst, overtly vindictive," and offers three examples in support. (Opp. at 6-7.) None show an improper purpose.

First, Seelye argues the Bank chose to pursue her personally rather than first going after the borrower and its collateral. That argument is addressed in section D.2 above. California law allows the Bank to do so, and the Guaranty's waivers expressly permit it.

Second, Seelye argues the Bank's conduct in a separate matter, the foreclosure and loan payoff involving her affiliate Seebon, LLC, was "obstructionist." She describes delays in providing a payoff letter, incorrect wiring instructions, and an improper appraisal charge that was eventually refunded. (Opp. at 6-7.) Even accepting her account, conduct in an unrelated transaction does not establish that this attachment is sought for an improper purpose. The attachment statute asks whether the Bank seeks security for recovery on its claim or for some other end. Frustrations in a separate Seebon transaction, even if attributable to the Bank, do not answer that question. And even if the Bank's conduct in the Seebon matter reflects vindictiveness toward Seelye, that motive would not render this attachment improper. (See *Pimentel v. Houk* (1951) 101 Cal.App.2d 884, 886 ["On the face of the record plaintiff was fully within his rights in causing the writ of attachment to be issued and served; and the fact that he may have had an ulterior motive to destroy defendant financially did not render the use of the writ one improper in the regular conduct of the proceeding."].)

Third, Seelye argues the Bank misrepresented her continuing involvement with the borrower by using her 2023 State and IRS filings to suggest she "was actively involved in Borrower's business at all relevant times," when in fact she was terminated in October 2024 and has had no involvement since that time. (Opp. at 7; Scheiber Decl. at 11:10-13.) The Court has reviewed the Bank's evidentiary submissions, including the 2023 filings and the Bank's characterization of Seelye's involvement, in reaching the findings in sections C.1 and C.3. The manner in which the Bank's brief characterizes certain evidence does not establish an improper purpose.

The Court notes that Seelye also raises a separate concern that the attachment is premature because TRP Capital Partners, through its subsidiary Olivine Holdings, LLC, has made an offer to acquire Maximum Entertainment AB and has told her that if the offer is accepted, TRP will pay the Term Loan. (Opp. at p. 13; Seelye Decl. ¶¶ 33-35.) Seelye's statement that TRP "informed Seelye and Plaintiff" the loan will be satisfied does not identify the source of the communication, attach any writing, or come from anyone with personal knowledge of TRP's intentions. Even if Seelye's account is taken as true, a possible future payment by a third-party investor does not change the Bank's right to security on a debt that is owed today. The Bank has confirmed that if the loan is paid, the attached property will be released.

F. Property to be attached and claim of exemption

The Application identifies the property to be attached as Seelye's residence at 108 Greenbank Drive, Lafayette, California, together with all assets within the other categories listed in Code of Civil Procedure section 487.010(c). Seelye contends that the property description is inadequate, that the residence is exempt as community property held with her non-debtor spouse under section 703.020, that it is exempt as property necessary for the support of Seelye and her family under section 487.020(b), and that it is exempt from attachment under the homestead exemption.

1. The property description

Plaintiff seeks to attach all property under Code of Civil Procedure section 487.010(c), including: (1) interests in real property, (2) accounts receivable, chattel paper and general intangibles, (3) equipment, (4) farm products, (5) inventory, (6) final money judgments, (7) money on the premises, located elsewhere and in deposit accounts, where trade or business is conducted, (8) negotiable documents of title, (9) instruments, (10) securities, and (11) minerals or the like to be extracted. (See Plaintiff's Application, Schedule A at 3.)

Seelye argues that the Application's identification of property by the categories listed in § 487.010(c) is impermissibly broad and she "cannot determine what property Plaintiff seeks to attach from these improperly broad descriptions." (Opp. at 13.) She notes she owns no "farm equipment" or "minerals or the like to be extracted."

The description satisfies § 484.020(e), which requires the description to be "reasonably adequate to permit the defendant to identify the specific property sought to be attached." Description of an individual defendant's property by the statutory asset categories is sufficient under the controlling authority. (*Bank of America v. Salinas Nissan, Inc.* (1989) 207 Cal.App.3d 260, 268 [property description by asset category reasonably adequate to inform defendant what plaintiff sought to attach].) That Seelye may not own property in every category does not render the description defective.

2. The community property argument

Seelye argues that because the residence is community property held with her husband, who is not a defendant in this action, attaching the residence impermissibly affects his interests without notice or

due process, and that at minimum the Bank may attach only her 50% interest. (Opp. at 14.)

The argument is contrary to controlling authority, which the Bank correctly identifies in its opposition to the COE. Code of Civil Procedure section 487.010(d) provides that community property is subject to attachment if "the community property would be subject to enforcement of the judgment obtained in the action in which the attachment is sought." Family Code §§ 902 and 910 state that community property is liable for debts incurred by either spouse during the marriage. The community property interests of both the debtor and the non-debtor spouse are thus reachable for Seelye's debt to the Bank, whether or not the non-debtor spouse is sued.

3. The § 487.020(b) "necessary for support" exemption

Seelye claims exemption under Code of Civil Procedure section 487.020(b), which exempts "property necessary for the support of a defendant who is a natural person and the family of the defendant supported in whole or in part by the defendant." On her claim of exemption, she describes Lafayette property as her "family residence" and states: "Plaintiff cannot attach a financial statement publicly because she is in negotiations and litigation with Borrower but is willing to provide financial information for in camera review by the Court." (See May 6, 2026 COE, AT-155, p. 2, ¶ 4(c)(2).)

The burden of proof on a claim of exemption rests with the defendant. (Code Civ. Proc., § 484.070(g) ["the defendant has the burden of proof in the hearing on the right of attachment to prove that the property is exempt from attachment"].) Section 484.070(c) requires the claim to be "supported by an affidavit showing that the property described in the claim is exempt and stating the facts necessary to support the claim." And section 487.020(b)'s "necessary for support" inquiry requires consideration of the defendant's assets, liabilities, income, and expenses which Code of Civil Procedure section 703.530 requires to be substantiated by a sworn financial statement.

Seelye has not submitted a sworn financial statement, or any other facts bearing on whether the residence is "necessary for support." The only statement in Seelye's declaration touching on hardship is paragraph 41, where she states: "the attachment would impair my ability to meet personal financial obligations." This is a conclusory assertion without the foundational facts needed to evaluate it.

Seelye's proposed solution, *in camera* review of financial information, is not the proper procedure. California law provides a mechanism for shielding sensitive financial information from public disclosure, a noticed motion to seal under rules 2.550 and 2.551 of the California Rules of Court. Seelye was served with the Application on January 22, 2026, and appeared in the action on March 20, 2026. Seelye had sufficient time before the hearing on the Application to seek a sealing order.

In camera submission of evidence on which the defendant bears the burden of proof, without the opposing party's opportunity to test or respond to that evidence, is not the appropriate procedure for resolving a contested claim of exemption. Accordingly, The Court declines *in camera* review.

Seelye argues that she and her husband "need their home to live in with their son and to be able to work and earn a living, so that they may have a fair chance to remain productive members of the community." (Opp. p. 14:14-17, citing Seelye Decl. ¶ 41.) The argument misunderstands what

attachment does. An attachment lien would not dispossess Seelye or her family of the property. The attachment is merely a security device and Seelye and her family continue to live in the home, work from it, and use it just as they did before.

The claim of exemption under Code of Civil Procedure section 487.020(b) is **denied**.

4. The homestead exemption

Seelye also claims the residence is exempt from attachment as a homestead. (Claim of Exemption ¶¶ 4(c)(1), (5); see Code Civ. Proc. §§ 704.710-704.730.)

Seelye has provided no evidence allowing the Court to determine the value of the residence, the amounts secured by liens or encumbrances against it, or her entitlement to a specific homestead exemption amount. She bears the burden under section 484.070(g) and has not carried it.

In any event, Defendant's claim of a homestead exemption does not prevent attachment. An attachment lien attaches to a homestead "in the amount of any surplus over the total of the following: (1) All liens and encumbrances on the homestead at the time the attachment lien is created. (2) The homestead exemption set forth in Section 704.730." (Code Civ. Proc. § 487.025.) The automatic homestead exemption under section 704.730 does not bar attachment but instead provides protection only when a judgment creditor seeks a court-ordered sale of the dwelling. (*Reddy v. Gonzalez* (1992) 8 Cal.App.4th 118, 121-122; *Amin v. Khazindar* (2003) 112 Cal.App.4th 582, 589.) Thus, the exemption would become relevant only if and when the Bank seeks a court-ordered sale of the dwelling.

Seelye's claim of a homestead exemption is **denied** on the present record.

G. The bond

A plaintiff must post an undertaking to obtain an attachment. The purpose is to secure the damages defendant may obtain should the attachment later be found to have been wrongful. (Code Civ. Proc, § 489.210.)

Absent objection, the amount for such undertaking is \$10,000. (Code Civ. Proc, § 489.220(a).) "If, upon objection to the undertaking, the court determines that the probable recovery for wrongful attachment exceeds the amount of the undertaking, it shall order the amount of the undertaking increased to the amount it determines to be the probable recovery for wrongful attachment if it is ultimately determined that the attachment was wrongful." (Code Civ. Proc, § 489.220(b).)

Seelye asks the Court to require a bond higher than the statutory \$10,000 minimum under section 489.220(b), because the bank's claim lacks probable validity and the harm from a wrongful attachment correspondingly increases. (Opp. at 14-15.) Because the Court has found that the Bank's claim has probable validity, the statutory \$10,000 undertaking is sufficient. (See *North Hollywood Marble Co. v. Superior Court* (1984) 157 Cal.App.3d 683, 690-691.)

Thus, the undertaking is set at \$10,000.

Conclusion

Plaintiff Cathay Bank's Application is **granted**. The amount to be secured is \$2,454,662.38, consisting of \$2,426,813.38 in principal and accrued interest, \$24,848.99 in estimated attorney fees, and \$3,000 in estimated costs. The Bank is required to post an undertaking of \$10,000 before the writ shall issue.

19. 9:00 AM CASE NUMBER: C26-00466
CASE NAME: ROBERT WOODS VS. BRIDGESTONE RETAIL OPERATIONS, LLC,
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: ARBY AIWAZIAN**
FILED BY: WOODS, ROBERT
TENTATIVE RULING:

Summary

Plaintiff's counsel, Lawyers for Justice PC, by and through Travis J. Maher, Mno M. Bogosyan, and Raffi Margossian ("Withdrawing Counsel"), filed a Motion to Be Relieved as Counsel for Plaintiff Robert Woods ("Plaintiff"). The Motion is **granted** as set forth herein. No appearance is required at the hearing on May 27, 2026.

Background

This is a Private Attorney General Act Case wherein Plaintiff brings an action against Defendant Bridgestone Retail Operations, LLC for alleged violations of various provisions of the Cal. Labor Code. On April 1, 2026, Withdrawing Counsel filed a Motion to be Relieved as Attorney for Plaintiff.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Defendant's Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal. Specifically, Withdrawing Counsel attests that there is breakdown of the attorney client relationship, including a breach of the retainer agreement, which makes representation of Plaintiff impossible.

The Court finds that there is good cause to grant this Motion to relieve Plaintiff's Counsel. The Court acknowledges that the prejudice to Plaintiff is minimal, as there is ample time for Plaintiff to retain replacement counsel, or, in the alternative, to represent himself.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record. The makes the following orders:

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel as submitted on April 15, 2026. The withdrawal is effective immediately.
3. Defendant's Counsel is ordered to serve a copy of the Order to Plaintiff by mail at his last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill-out and file the change of address form with the Court.
4. The Court also orders Withdrawing Counsel to provide notice of the Case Management Conference calendared for June 18, 2026 at 8:30 a.m. in Department 16, along with a notification that Plaintiff or new counsel is required to appear.
5. Defendant's counsel shall file a proof of service form indicating that the client was served with the Court's Order and the Change of Address form (MC-040).

20. 9:00 AM CASE NUMBER: MSC20-00441

CASE NAME: MILZ VS. SILVERA

***HEARING ON MOTION IN RE: ENTRY OF JUDGMENT OF DISMISSAL**

FILED BY: MILZ, MARK

TENTATIVE RULING:

Before the Court is Plaintiffs Mark Milz and Milz Development & Construction's Motion for Entry of Judgment of Dismissal.

Plaintiff's Motion for Entry of Final Judgment is **granted** with modification as discussed below.

Procedural Background

Plaintiffs filed their Complaint on March 2, 2020. The parties proceeded to litigate the matter. On September 13, 2024, Defendants M. Marketta Silvera and L. Rondal Silvera filed a motion for summary judgment. That same date, Defendants Golden Gate Sotheby's International Realty and Lauren Holloway also filed a motion for summary judgment, or in the alternative, summary adjudication. Both motions were unopposed.

On October 30, 2024, the Court issued two separate minute orders after hearing argument on the motions granting summary judgment on the two motions. Thereafter, the Silvera Defendants submitted an order after hearing, which the Court signed on November 20, 2024, and filed on November 22, 2024, indicating that the Silvera Defendants' Motion for Summary Judgment was granted. It also attached and incorporated the Court's minute order from October 30, 2024. Defendants Golden Gate Sotheby's International Realty and Lauren Holloway never submitted any such order, despite California Rules of Court, Rule 3.1312's requirement to do so.

None of the Defendants sought entry of a final judgment based on the granting of summary judgment in their favor. Plaintiffs now move the Court to enter a final judgment so that they can properly take their appeal as to the granting of the summary judgments.

The Silvera Defendants filed a 'limited opposition' indicating that they "have no objection to entry of judgment in their favor provided that the Court retain jurisdiction to award attorneys' fees." The Court notes that the Silvera Defendants filed a motion for attorney fees on February 20, 2026, which

is currently scheduled to be heard on July 1, 2026.

Defendants Golden Gate Sotheby's International Realty and Lauren Holloway have not filed any documents in opposition.

As of the time of the drafting of this TR, Plaintiffs have not filed a reply – which the Court takes to mean that they do not oppose the Silvera Defendant's proviso that the Court retain jurisdiction to award attorneys' fees.

Analysis

"A judgment is the final determination of the rights of the parties in an action or proceeding." (Code of Civ. Proc. § 577.) "The general test for determining whether the judgment is final is 'that where no issue is left for future consideration except the fact of compliance or noncompliance with the terms of the first decree, that decree is final, but where anything further in the nature of judicial action on the part of the court is essential to a final determination of the rights of the parties, the decree is interlocutory.'" (*Bakewell v. Bakewell* (1942) 21 Cal.2d 224, 227 quoting *Lyon v. Goss* (1942) 19 Cal.2d 659.)

"It is well established that there can be but one judgment in an action as between the same parties and that is a judgment which determines all matters in controversy between them in the action." (*Pastor v. Younis* (1965) 238 Cal.App.2d 259, 264.)

"An order granting a motion for summary judgment, entire or partial, is a preliminary nonappealable order; appeal must be taken from the final judgment ultimately entered in the case." (*King v. State of California* (1970) 11 Cal.App.3d 307, 310.)

Here, summary judgment was granted in favor of each of the Defendants – thereby ending the dispute between the parties. Accordingly, Plaintiffs are entitled to have a 'final judgment' entered finalizing the Court's decision to properly perfect their ability to appeal.

The Silvera Defendants do not oppose entry of a final judgment. They do, however, want to make sure that the Court retains jurisdiction to rule on their pending motion for attorneys' fees and costs. If "a judgment reserves jurisdiction to award attorney fees, that portion of the judgment is nonfinal and nonappealable." (*P R Burke Corp. v. Victor Valley Wastewater Reclamation Authority* (2002) 98 Cal.App.4th 1047, 1053.)

To ensure there is no argument regarding the Court's ability to rule on the pending motion, the Court will grant the request to enter a final judgment in favor of Defendants, with the explicit reservation of jurisdiction to rule on the Silvera Defendant's motion for attorneys' fees and costs.

Conclusion

Plaintiff's Motion for Entry of Final Judgment is **granted**. Plaintiffs shall submit a new [Proposed] Judgment of Dismissal that includes the following language. "The Court has not addressed the issues related to the Silvera Defendants request for attorneys' fees and costs and is reserving jurisdiction to determine such issues."

21. 9:00 AM CASE NUMBER: MSC21-00637

CASE NAME: OSCAR CORONA VS. JOSHUA WARD

***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM (CONTINUED FROM 02.05.26)**

FILED BY:

TENTATIVE RULING:

The Court has reviewed the Status Report filed by the Plaintiff in this case on February 3, 2026 and the minute order prepared by Judge Weil on February 5, 2026. Lead counsel are ordered to appear via Zoom to provide the Court with a status report on the final distribution of funds in this matter.

Discovery Law & Motion

22. 9:01 AM CASE NUMBER: C23-01493

CASE NAME: KWAMINA DAVIS VS. DIAMOND RIDGE POST ACUTE, LLC DBA DIAMOND RIDGE HEALTH CARE CENTER

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES OF PLAINTIFF KWAMINA DAVIS TO SPECIAL INTERROGATORIES, SET ONE**

FILED BY: DIAMOND RIDGE POST ACUTE, LLC DBA DIAMOND RIDGE HEALTH CARE CENTER

TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 22, 23 and 24. The following discovery motions are scheduled to be heard on by the Court on May 27, 2026 at 9:00 a.m. in Department 16:

1. Defendant Diamond Ridge Post Acute LLC's ("Defendant") Motion to Compel Further Responses of Plaintiff Kwamina Davis ("Kwamina") to Special Interrogatories, Set One and Request for Sanctions in the amount of \$869 filed on November 18, 2025;
2. Defendant's Motion to Compel Further Responses of Kwamina to Request for Production, Set One and Request for Sanctions in the amount of \$760 filed on November 18, 2025;
3. Defendant's Motion to Compel Further Responses of Plaintiff Robert Davis ("Robert") to Form Interrogatories, Set One and for Sanctions in the amount of \$2,200 filed on November 18, 2025

The Court also has scheduled hearings on the following discovery motions in Department 16 on September 23, 2026 at 9:00 a.m.:

4. Defendant's Motion to Compel Further Responses of Robert to Special Interrogatories, Set One and for sanctions.
5. Defendant's Motion to Compel Further Responses of Rober to Request for Production, Set One and for Sanctions;
6. Defendant's Motion to Compel Further Responses of Kwamina to Form Interrogatories, Set

One, and for Sanctions;

The Court **vacates** all six (6) of the foregoing hearings on these discovery motions, and any other subsequently filed discovery motion, and appoints, *sua sponte*, a Discovery Referee to hear all of the foregoing discovery motions, and any and all discovery motions, filed by the Parties in this litigation as set forth in this tentative ruling. No appearance is required on May 27, 2026, unless this tentative ruling is contested.

Background

Plaintiffs Kwamina and Robert Davis have filed suit against Defendant Diamond Ridge Post Acute, LLC (dba Diamond Ridge Health Care Center), asserting claims for elder abuse/neglect, professional negligence, wrongful death, negligent infliction of emotional distress, and violation of patients' rights. The plaintiffs bring these claims both individually and as successors-in-interest to Pauline Davis, the deceased person who was under the Defendant's care.

Pauline Davis was admitted to the defendant's facility on or around January 20, 2017, and remained there until August 29, 2022. The plaintiffs allege that the Defendant was aware that Davis required substantial assistance with eating, drinking, toileting, hygiene, and mobility, as well as heightened monitoring for skin breakdown. Despite this knowledge, the defendant allegedly failed to provide adequate care and supervision, resulting in Davis suffering malnutrition, weight loss, bedsores, and ultimately death.

Defendant served discovery to both Plaintiffs in the form of Special and Form Interrogatories, and a Request for Production of Documents. Plaintiffs responded. There is a dispute between the Parties regarding the adequacy of Plaintiff's responses which resulted in Defendant's filing of these six discovery motions.

Analyses

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, Counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel should be considered a last resort when trying to prepare a case for trial." California Civil Discovery Practice (4th ed Cal CEB) §15.32.C. Additionally, "trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified.

If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes." California Civil Discovery Practice (4th ed Cal CEB) §15.38.6. Indeed, in context, this Court's civil division manages 25,000 active cases. Department 16, alone, oversees 2,700 of those cases, including the complex, class action, construction defect, PAGA, CEQA and statewide coordinated cases. Here, Counsel appeared to have met and conferred but are unable to resolve the discovery disputes before Plaintiff filed its motions.

On the motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Cal. Code of Civ. Proc. §§639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions, the existing disputes raised by the pending discovery motions and nature of underlying legal issues, require discovery reference. Cal. Code of Civ. Proc. Section 639(a)(5) states: “When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.”

The Court finds, here, that a discovery referee is necessary to hear and determine all disputes relevant to discovery. The Court makes this finding on the grounds that there are five (6) pending discovery motions on calendar in the matter, scheduled for May 27, 2026 and September 23, 2026. These motions and opposition filed to date consist of over one thousand three hundred thirty-six (1336) pages. The Court finds that Counsel are unable to effectively meet and confer to arrive an informal resolution of the discovery disputes. The Parties will benefit from having a discovery referee address these discovery issues in an efficient and timely manner. A discovery referee will be able to devote necessary time, which the Court does not have, to spend in the resolution of these disputes.

After considering the moving and opposition papers submitted by Counsel, and analyzing the applicable statutory and decisional authorities, the Court finds good cause to make the following findings, orders and ruling.

Ruling

Discovery Referee is appointed. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640.

1. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear the Discovery Motions scheduled for hearing on May 27, 2026, and September 23, 2026, and all subsequently filed discovery motions. The hearing on the foregoing discovery motions are vacated from Department 16 and are referred for further hearing to the Discovery Referee.

2. By no later than June 5, 2026, the Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall e-file a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee’s curriculum vitae and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by June 5, 2026, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their *curriculum vitae* to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov

by Wednesday, June 10, 2026. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.

3. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.

4. Defendants' Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by Defendant's Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment, along with a copy of this order.

5. The Clerk of the Court shall vacate all of Discovery Motions calendared for May 27, 2026 and September 23, 2026. All future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.

6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

23. 9:01 AM CASE NUMBER: C23-01493
CASE NAME: KWAMINA DAVIS VS. DIAMOND RIDGE POST ACUTE, LLC DBA DIAMOND RIDGE HEALTH CARE CENTER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES OF PLAINTIFF KWAMINA DAVIS TO REQUEST FOR PRODUCTION, SET ONE**
FILED BY: DIAMOND RIDGE POST ACUTE, LLC DBA DIAMOND RIDGE HEALTH CARE CENTER
TENTATIVE RULING:
See Line 22

24. 9:01 AM CASE NUMBER: C23-01493
CASE NAME: KWAMINA DAVIS VS. DIAMOND RIDGE POST ACUTE, LLC DBA DIAMOND RIDGE HEALTH CARE CENTER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES OF PLAINTIFF ROBERT DAVIS TO FORM INTERROGATORIES, SET ONE**
FILED BY: DIAMOND RIDGE POST ACUTE, LLC DBA DIAMOND RIDGE HEALTH CARE CENTER
TENTATIVE RULING:
See Line 22.